

[illegible]

## Continuation of Supplies or Services and Prices/Costs

### Additional Information/Notes

| Item                           | Supplies/Service                                                                                                                                                                                                                                                                                                                                                                                            | Quantity | Unit   | Unit Price | Amount |
|--------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|--------|------------|--------|
| 0001                           | FURNISHINGS: YONGSAN-CASEY BLDG. 2849 The contractor shall provide furnishings in support of the Huntsville Center Centrally Managed Furnishings Program for USAG Yongsan-Casey building 2849, in accordance with the attached Line Items, Item Descriptions and Statement of Work. **Please submit quotes valid for 120 days.<br>End-Item Description: Furnishing<br>Pricing Arrangement: Firm Fixed Price | 1        | Lot    |            |        |
| 0002                           | FURNISHINGS: DAEGU BLDG. 593 The contractor shall provide furnishings in support of the Huntsville Center Centrally Managed Furnishings Program for USAG Daegu building 593, in accordance with the attached Line Items, Item Descriptions and Statement of Work. **Please submit quotes valid for 120 days.<br>End-Item Description: Furnishing<br>Pricing Arrangement: Firm Fixed Price                   | 1        | Lot    |            |        |
| Option<br>Line<br>Item<br>0003 | CONUS STORAGE: YONGSAN-CASEY BLDG. 2849 ***Option: This line item may be unilaterally exercised any time between Contract Award and Furniture Install Completion Date at the discretion of the Contracting Officer. Storage shall be a Firm Fixed Price amount of \$_____per month, for                                                                                                                     | 6        | Months |            |        |

|                                          |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |   |        |  |  |
|------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---|--------|--|--|
|                                          | <p>a total amount of \$_____ for six months. Contractors shall take into account all costs necessary to store furnishings secure from theft, damage, and weather elements in case of any contingency en-route to installation. Storage shall include all costs to place furnishings into and remove furnishings from storage (i.e. double handling, transportation, etc.). The quoted cost should include all costs necessary to complete delivery and installation of furniture at the terminal location.</p> <p>End-Item Description: Furnishing<br/>Pricing Arrangement: Firm Fixed Price</p>                                                                                                                                                                                                                                                                               |   |        |  |  |
| <p>Option<br/>Line<br/>Item<br/>0004</p> | <p>CONUS STORAGE: DAEGU BLDG. 593 ***Option: This line item may be unilaterally exercised any time between Contract Award and Furniture Install Completion Date at the discretion of the Contracting Officer. Storage shall be a Firm Fixed Price amount of \$_____per month, for a total amount of \$_____for six months. Contractors shall take into account all costs necessary to store furnishings secure from theft, damage, and weather elements in case of any contingency en-route to installation. Storage shall include all costs to place furnishings into and remove furnishings from storage (i.e. double handling, transportation, etc.). The quoted cost should include all costs necessary to complete delivery and installation of furniture at the terminal location.</p> <p>End-Item Description: Furnishing<br/>Pricing Arrangement: Firm Fixed Price</p> | 6 | Months |  |  |

|                                |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |   |        |  |  |
|--------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---|--------|--|--|
| Option<br>Line<br>Item<br>0005 | <p>OCONUS STORAGE: YONGSAN-CASEY BLDG. 2849 ***Option: This line item may be unilaterally exercised any time between Contract Award and Furniture Install Completion Date at the discretion of the Contracting Officer. Storage shall be a Firm Fixed Price amount of \$_____per month, for a total amount of \$_____for six months. Contractors shall take into account all costs necessary to store furnishings secure from theft, damage, and weather elements in case of any contingency en-route to installation. Storage shall include all costs to place furnishings into and remove furnishings from storage (i.e. double handling, transportation, etc.). The quoted cost should include all costs necessary to complete delivery and installation of furniture at the terminal location. End-Item Description: Furnishing Pricing Arrangement: Firm Fixed Price</p> | 6 | Months |  |  |
| Option<br>Line<br>Item<br>0006 | <p>OCONUS STORAGE: DAEGU BLDG. 593 ***Option: This line item may be unilaterally exercised any time between Contract Award and Furniture Install Completion Date at the discretion of the Contracting Officer. Storage shall be a Firm Fixed Price amount of \$_____per month, for a total amount of \$_____for six months. Contractors shall take into account all costs necessary to store furnishings secure from theft, damage, and weather elements in case of any contingency en-route to installation. Storage shall include all costs to place</p>                                                                                                                                                                                                                                                                                                                    | 6 | Months |  |  |

|  |                                                                                                                                                                                                                                                                                                                                |  |  |  |  |
|--|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|--|--|--|
|  | <p>furnishings into and remove furnishings from storage (i.e. double handling, transportation, etc.). The quoted cost should include all costs necessary to complete delivery and installation of furniture at the terminal location.</p> <p>End-Item Description: Furnishing</p> <p>Pricing Arrangement: Firm Fixed Price</p> |  |  |  |  |
|--|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|--|--|--|

## **INSTRUCTIONS TO QUOTERS**

### **1. FURNITURE INSTALL INFORMATION:**

A. Estimated award date is: 14 July 2026

B. Required install dates are as follows:

#### **YONGSAN-CASEY BLDG. 2849**

Furniture Install Start Date: **18 November 2026**

Furniture Install Completion Date: **16 December 2026**

#### **YONGSAN-CASEY BLDG. 2849**

Contractor Furniture Install Start Date (FISD):

(insert date, not After Receipt of Order)

Contractor Furniture Install Completion Date (FICD):

(insert date, not After Receipt of Order)

#### **DAEGU BLDG. 593**

Furniture Install Start Date: **18 November 2026**

Furniture Install Completion Date: **16 December 2026**

#### **DAEGU BLDG. 593**

Contractor Furniture Install Start Date (FISD):

(insert date, not After Receipt of Order)

Contractor Furniture Install Completion Date (FICD):

(insert date, not After Receipt of Order)

C. Specific install instructions are contained in the Statement of Work (SOW), Attachment # 3.

### **2. SHIPPING/STORAGE INFORMATION**

A. The Contractor shall ship goods on an FOB Destination basis.

B. Contractors shall quote six month's storage cost in the SF-1449 form on each of the two storage CLINs to be considered eligible for award. If a storage fee is not included in pricing, the Contractor's quote may be considered a non-conforming response to the solicitation. A quote for six months of storage is required for when the need for storage is identified prior to leaving the Continental United States (CONUS), and a quote for storage is required for when the need for storage is identified after items have departed CONUS. These two options for storage can be unilaterally exercised by the Contracting Officer for a combined total maximum of six months of storage. Storage needed for partial shipments will be prorated by the price of the items stored relative to the total price of all of the items ordered. Storage will only be funded by modification and at the discretion of the Contracting Officer. Storage will be a firm fixed price amount. Contractors shall take into account all costs necessary to store furnishings secure from theft, damage, and weather elements in case of any contingency en-route to installation. Storage shall include all costs to place furnishings into and remove furnishings from storage (i.e. double handling, transportation, etc.). The quoted cost should include all costs necessary to complete delivery and installation of furniture at the terminal location. If storage is required in excess of 6 months, a new amount will be negotiated. If the storage cost is incurred, fast payment procedures may be implemented in accordance with FAR 52.213-1. If storage is required, payment may be approved for 85% of the total supplies only. Installation and the remaining 15% of supplies will be

approved for payment once all responsibilities have been completed as set forth in the contract. Contractors shall coordinate delivery and installation with Government Technical Representative (TR) shown in the SOW and save records of these communications with the goal of successful delivery and installation. This requirement for coordination includes, but is not limited to, communicating with the Government TR prior to shipping items in order to prevent unnecessarily expensive storage costs.

C. The Contractor shall provide a Certification of Conformance for any order that will be stored in a warehouse for which the Contractor desires partial payment in advance of installation of the furnishings. FAR 52.246-15 addresses how to complete a certificate of conformance, and can be found in Attachment # 4, "Order Clauses."

D. Destination/Ship to Address and Transportation Information: See Table 1 in SOW, Attachment # 3.

### **3. INSPECTION AND ACCEPTANCE**

Inspection and Acceptance must be by the Government TR. See Table 1 in SOW, Attachment # 3.

### **4. LIST OF ATTACHMENTS**

|                                                       |          |
|-------------------------------------------------------|----------|
| ATTACHMENT # 1 – LINE ITEM PRICING YONGSAN-CASEY 2849 | 01 page  |
| ATTACHMENT # 1 – LINE ITEM PRICING DAEGU 593          | 01 page  |
| ATTACHMENT # 2 – FURNITURE ITEM DESCRIPTIONS (FID)    | 07 pages |
| ATTACHMENT # 3 – STATEMENT OF WORK                    | 14 pages |
| ATTACHMENT # 4 – ORDER CLAUSES                        | 42 pages |
| ATTACHMENT # 5 – CONTRACTOR PERFORMANCE EVALUATION    | 02 pages |
| ATTACHMENT # 6 – ACCIDENT PREVENTION PLAN             | 08 pages |
| ATTACHMENT # 7 – ORDER COMPLETION STATEMENT           | 01 page  |
| ATTACHMENT # 8 – TECHNICAL DOCUMENTS CHECKLIST        | 02 pages |

### **5. CONTRACTING OFFICER'S INSTRUCTIONS AFTER AWARD**

A. Only a warranted Contracting Officer (either a Procuring Contracting Officer (PCO) or an Administrative Contracting Officer (ACO)), acting within their delegated limits, has the authority to issue modifications or otherwise change the terms and conditions of this contract. If an individual other than the Contracting Officer attempts to make changes to the terms and conditions of this contract, you shall not proceed with the change and shall immediately notify the Contracting Officer.

B. The Contractor shall be responsible to coordinate the installation of its items with the site Technical Representative at least 30 days before the installation start date. At this time any special security/install instructions will be provided by the Government to that Contractor. The Contractor shall refer to the Statement of Work (Attachment #3) for additional installation instructions. If additional days for installation are needed, a justification should be provided at the time of quote for approval by the Contracting Officer.

C. Security issues (e.g. getting on and off post), logistical discussions of the installation process shall be coordinated with the Furniture Management Officer (FMO).

D. If a subcontracted GSA item is found to be unavailable after award, and Government acceptance of a substituted item is requested, the Contractor shall submit to the Contracting Officer copies of the GSA contract terms and conditions along with the technical data sheets for the proposed substitute item.

E. Safety Plans. The Contractor shall be responsible for submitting a completed safety plan within one month after contract award, or where expedited installation is required NLT 10 days before installation. NO installation will be permitted without an approved safety plan. The Contractor shall not begin installing items until a safety plan has been submitted to and approved by the Government. All safety plans shall be emailed to:

[furnishinginvoices@usace.army.mil](mailto:furnishinginvoices@usace.army.mil)

F. The Contractor shall comply with all laws, rules and regulations of the installation, including but not limited to, the following: No weapons of any kind are to be carried by any person or transported in any vehicle entering an Army installation. Truck drivers carrying any kind of weapon will be denied access to the Army installation.

G. If requested by the Contracting Officer, the Contractor shall provide reports for quoted items.

## **6. INVOICES**

A. Partial order invoices will not be accepted. Invoices may be submitted for one building of a multi-building delivery order only with the approval of the Contracting Officer, following the complete installation of the one building by the Contractor and acceptance by the Government.

B. All invoices shall be emailed to the following email address for processing: [FurnishingInvoices@usace.army.mil](mailto:FurnishingInvoices@usace.army.mil)

C. The Contractor shall return a signed Attachment # 7, Order Completion Statement, with its final invoice. Invoices shall not exceed the contract amount. A final invoice submitted without a signed Order Completion Statement will be rejected.

## **7. SUBCONTRACTING/JOINT VENTURE PARTNER**

A. Contractor Teaming Arrangements (CTAs– see <http://www.gsa.gov/cta>) and subcontracting will be acceptable to provide a total solution for this requirement.

B. Contractor Teaming Arrangements (CTAs) by General Services Administration (GSA) Multiple Award Schedule (MAS) Contractors are strongly encouraged to ensure success. If an entity is identified as a team member (which means a Schedule Contractor working with another Schedule Contractor, and is distinguished from working as a subcontractor), their quote shall be priced based on their GSA schedule, minus any Contractor discount that may be provided at the delivery order level.

C. Subcontractors, whether they hold an MAS or not, are not part of the team for CTA purposes, and are not a party to the CTA agreement. Subcontractors (even if the subcontractor holds a GSA MAS) shall utilize the labor categories/items rates/prices of the GSA MAS prime Contractor under which they are subcontracting; the same conditions apply to a CTA member who would perform as a subcontractor for a specific delivery order, and not as a CTA member.

D. In the case of small business set-asides, all CTA members shall be small businesses.

## **8. INSTRUCTIONS TO CONTRACTORS**

A. The Contractor shall provide pricing for all items listed in the RFQ for the quote to be accepted by the Government.

B. The Contractor shall complete the furniture installation schedule under FURNITURE INSTALL INFORMATION and include in the quote submission.

C. All quoted items shall meet the specifications defined in the Furniture Item Description (FID), Attachment # 2.

D. Name brand, model numbers, and GSA contract numbers shall be provided for all quoted GSA items, including pass-thru items and those manufactured by the Contractor. Pursuant to DFARS 252-225-7020, submission of a proposal in response to this RFQ shall serve as offeror's AFFIRMATION AND CERTIFICATION that all end products, materials, and supplies to be delivered, whether supplied by the offeror or its subcontractors, under any subsequent contract awarded to offeror under this RFQ, shall be U.S. made, qualifying country made or designated country made, UNLESS offeror's proposal EXPRESSLY AND CONSPICUOUSLY identifies specific end products, materials, and supplies to be so delivered that are not compliant as described.



E. At the time of their quote, Contractor shall provide the most current GSA documentation that is highlighted or contains other markings, which brings immediate attention to the information, and enables the Government to remove all doubt whether the Contractor has or has not met the specifications shown in the FID.

F. Technical Data Sheets Required. Current and complete cut sheets for all items specified in the FID shall be provided by the Contractor, unless otherwise specified. All salient features of items specified in the FID shall be addressed on the cut sheets. When the Contractor provides more than one cut sheet for an item specified in the FID, the cut sheets and supporting documentation shall be highlighted or contain other markings, which bring immediate attention to information, and enables the Government to remove all doubt whether a Contractor has or has not met the specifications shown in the FID. The burden of providing information, which shall be **organized and sequential according to the FID**, is the responsibility of the Contractor. The Government shall not be held responsible for Contractor information that is not organized and sequential according to the FID, or not highlighted (if within a larger document and used as proof), which prevents conclusive comparisons between the Contractor's quoted items and the requirements during technical review.

G. Electronic Price Quote is Required. Attachment #1, "Line Item Pricing," will be provided in an Excel spreadsheet format by the Government. The Contractor shall **submit the completed Attachment #1 in Excel format** to the Government by the deadline for submission of quotes set forth in this RFQ. The completed spreadsheet shall include GSA contract and model numbers for all items. Attachment 1 should reflect only items provided through a teaming agreement, unless specified as open market items. Contractors shall provide pricing for all line items, even if the amount is \$0. Contractors are encouraged to provide discounts off of schedule contract prices on the items quoted. Contractors shall include both the schedule contract unit price as well as the unit price offered in response to this solicitation on the Attachment 1 in the appropriate columns. Quotes from Contractors that fail to do so may be considered non-conforming responses to the solicitation.

H. Attachment # 8, "Technical Documents Checklist," will be provided in Word format by the Government. The Contractor shall **submit a completed Attachment # 8 in Word format** to the Government by the deadline for submission of quotes set forth in this RFQ.

I. Inclusion of non-GSA items (open market): Contractors are highly encouraged to propose only those items available on their GSA schedule contracts; however, it may be occasionally necessary to include non-GSA (open market) items on the delivery order. Open market/non-schedule items shall be separately identified in the quote and on the delivery order and should not exceed \$10,000 per line item. Any open market item that exceeds \$10,000 (per line item total) requires at least 3 competitive quotes for each item in order to determine price reasonableness. If there is no competition available, other information such as historical pricing, published catalog pricing, etc. shall be provided to support the quoted price(s). The total price of all open market items quoted in response to the subject RFQ shall not exceed \$25,000 per order.

J. Product samples are not acceptable for this RFQ, unless otherwise directed by the Contracting Officer.

K. Multiple quotes are not acceptable for this RFQ. If multiple quotes are received, only one quote (as determined by the Contracting Officer) will be evaluated by the Government.

L. The Contractor should list any specific special features, warranty, and environmental and energy efficiency features applicable to its quoted products.

M. The Contractor is bound by the monthly storage fee quoted for an option for a maximum period of six months that may be unilaterally exercised by the Contracting Officer in one month increments. If a storage fee is not included in the Contractor's quote, the Contractor's quote may be considered a non-conforming response to the solicitation.

N. When drawings are included as attachments, they are for visualization purposes only. The FID takes precedence over drawings unless otherwise stated. Site conditions may not align with drawings. Post-award site verifications are the responsibility of the Contractor.

O. The Contractor shall submit the following with its quotation:

|                                 |       |
|---------------------------------|-------|
| GSA Number                      | _____ |
| Cage Code:                      | _____ |
| Taxpayer Identification Number: | _____ |
| UEI Number:                     | _____ |
| POC Name:                       | _____ |
| Email Address:                  | _____ |
| Phone Number:                   | _____ |

P. The Contractor shall be actively registered in the System for Award Management (SAM) with no exclusions.

Q. All quoted items shall comply with current GSA test requirements and be on the GSA contract schedule, unless specified as open market items. Contractors are NOT required to submit testing documentation with quotes; however, the Contracting Officer reserves the right to request actual copies of test reports at any time prior to or after award.

R. If the total price of the order exceeds \$250,000.00, the Contractor is requested to include a price reduction in their quote IAW FAR 8.405-4. The ordering activity Contracting Officer shall ensure all quotes received are fairly considered and award is made in accordance with the basis for selection in the RFQ. Ordering activities may request a price reduction at any time before placing an order. Schedule Contractors are not required to pass on to all schedule users a price reduction extended only to an individual ordering activity for a specific order.

#### 9. SUBMISSION, MODIFICATION AND REVISION OF QUOTES

A. Contracting documents (SF1449, SF30, Attachment # 1 in Excel format, Attachment # 8 in Word format) and technical documents (testing results, cut sheets, GSA documentation, and other supporting documents) together create the quote. The terms, “quote,” “RFQ response,” and “response” have the same meaning in this section.

B. Quotes shall be submitted by the Contractor to the Government in email, using as many emails as required to deliver a complete quote. When multiple emails are used to deliver a complete quote, Contractors shall state their number to the Government. Currently, Huntsville Center supports up to 10MB of content per email.

C. It is recommended that Contractors use the **Procurement Integrated Enterprise Environment (PIEE)**. A vendor portal for solicitations was introduced as an enterprise-level service for the Department of Defense (DoD) within the Procurement Integrated Enterprise Environment (PIEE) platform. This capability allows DoD to have a more automated and secure process for capturing solicitations and their attachments and responses from industry. To obtain additional information please visit:

<https://piee.eb.mil/xhtml/unauth/web/homepage/vendorGettingStartedHelp.xhtml>

- i. **PIEE Size Limit.** Each uploaded attachment can be up to 1.9 gigabytes (GB) in size. The application supports different file extensions.
- ii. **Notifications when an amendment to the solicitation is posted:** Within a solicitation, click the checkbox next to ‘Please notify me of amendments to this solicitation’ on the top left corner of the screen. You will receive email and system notification when an amendment is posted.
- iii. **Upload Multiple Documents in PIEE,** multiple attachments may be uploaded at one time. After you click ‘Choose File,’ highlight all the files you want to upload and click ‘Open.’ If the total size of all the attachments exceeds 1.9GB (see 4.A above), upload the multiple attachments in batches that keeps each batch under the 1.9GB limit. Please contact your company’s Account Administrator for any account related issues. If you are experiencing technical problems with Procurement Integrated Enterprise Environment, please contact the DISA DECC Ogden Electronic Business Service Desk at link below:  
<https://piee.eb.mil/xhtml/unauth/web/homepage/vendorCustomerSupport.xhtml>

D. The Government must have in its possession the Contractor’s entire quote by the RFQ due date and time.

E. Contractors shall return to the Government in the same Word version format received, their responses to the Government's requests for clarification.

F. Contractors shall not merge into a single PDF document both the technical documents (testing results, cut sheets, GSA documentation, and other supporting documents) and the contracting documents (SF1449, SF30, Attachment #1 in Excel format, Attachment # 8 in Word format).

G. Contractors shall not intentionally quote items that do not meet the specifications of the Primary Requirements. **The Primary Requirements for Administrative Office Furniture (ADMIN) are defined as office furniture systems and, if included in the FID, wood case goods.** The Government's intent is to receive timely quotes that are organized, complete, and technically acceptable, with no need or a minimal need for clarifications. Quotes that do not meet the specifications of the primary requirements (documented during technical review) may receive no further consideration for award.

## **10. NON-CONFORMING RESPONSES**

The Government is not required to accept non-conforming responses. Non-conforming responses may not receive a technical evaluation and may not receive consideration for award. The following types of responses are considered non-conforming:

A. A Contractor's quote that does not meet the specifications of the Primary Requirements.

B. A Contractor's submittal of technical documents (testing results, cut sheets, and other supporting documents) and contracting documents (SF1449, SF30, Attachment # 1 in Excel, and Attachment # 8 in Word) merged into a single PDF document.

C. A Contractor's submittal of technical documents that is incomplete or is not **organized and sequential according to the FID**, which would prevent a conclusive comparison between the Contractor's quote and the Government's requirement.

D. A Contractor's failure to respond to the Government's request for clarifications in the same Word format received, in order for the Government to be able to continue to record communications with the Contractor on the same form.

E. A Contractor's submittal of electronic documents whose file names do not reflect their general content, which do not enable the reader to locate information without opening documents repeatedly to be reminded of their contents, and which harm the Government's ability to perform technical review or other examination.

## **11. LATE RESPONSES / NON-RESPONSIVENESS**

A. Late responses are in all cases Contractor responses that are not in the Government's possession by the requested due date and time. Late responses will not be evaluated by the Government.

B. If a Contractor states in their quote that a GSA schedule modification is pending, then the Contractor shall email the Contract Specialist the approved modification prior to award. A Contractor's failure to email the Contract Specialist the required GSA schedule modification prior to award will result in their quote being determined incomplete and/or technically unacceptable.

C. After award is made, if the Contract Specialist receives from the Contractor a GSA schedule modification, even if its date preceded the date of the award, then the Contractor's completed quote will be determined late, and will have no effect on the existing award.

## **12. AMENDMENTS**

The Government may amend the RFQ for reasons that include extending the due date for submission of quotes, in response to construction delays on buildings to be furnished, in response to market conditions, or for other reasons that clarify the needs of the Government.

### **13. QUESTIONS**

A. All questions shall be submitted to the Contract Specialist no later than **10:00 am CST on 11 May 2026** at **Cheryl.C.Smith@usace.army.mil**. All answers to questions received will be posted and made available to all interested parties via an RFQ amendment. The Contracting Officer will not address any questions received following expiration of the aforementioned time in this paragraph. When the term “hour” is used to describe the time period for questions, then it means sequential hours without interruption (24 hours = 1 calendar day), unless otherwise specified.

B. Notifications to the Government from Contractors regarding limited- or non-available items, or potential errors in the Government’s specifications are welcomed.

C. A Contractor’s request to change the Government’s requirement before quotes are due, may not be addressed because it does not clarify the requirement for all potential quoters, and if accepted would change the requirement.

### **14. DOWN-SELECT PROCESS**

A. It is the Government’s intent to select a target of three (3) quotes for a complete technical evaluation to determine whether the quoted products in fact comply with the FID. The Contracting Officer has discretion to include more or less than three (3) quotes in the down-select. The down-select will be based on price, receipt of completed Attachment # 8 - Technical Documents Checklist.

B. At any time following the down-select, the Government may, at the discretion of the Contracting Officer, engage in exchanges with one or more of the Contractors whose quotes were down-selected, or consider additional quotes for evaluation.

### **15. EVALUATION CRITERIA**

A. Technical Evaluation – Technical will be rated “Acceptable” if all line items meet the specifications shown in the Furniture Item Description (FID).

B. Schedule – Schedule will be rated “Acceptable” if the Contractor install dates are within the dates shown below.

#### **YONGSAN-CASEY BLDG. 2849**

Furniture Install Start Date: **18 November 2026**

Furniture Install Completion Date: **16 December 2026**

#### **DAEGU BLDG. 593**

Furniture Install Start Date: **18 November 2026**

Furniture Install Completion Date: **16 December 2026**

C. Past Performance – Past Performance will be rated “Acceptable” or “Unacceptable.” The Government will use any available information to evaluate past performance.

D. Price – Price will be evaluated based on the Contractor’s total quote, which includes supplies, services, shipping, storage and optional items. Quoted items from GSA Contractors shall be on GSA Schedule contract and be at or below GSA pricing, unless specified as open market items.

E. The Government may, at the discretion of the Contracting Officer, engage in exchanges with Contractors. However, the Government reserves the right to make award without further exchanges.

## **16. SELECTION OF QUOTES FOR AWARD**

The successful Contractor will be the one whose quote is rated acceptable on technical, schedule, and past performance, and provides the best value to the Government. Best value will be determined by the quote that is technically acceptable and has the lowest total price.

| USAG YONGSAN-CASEY, Bldg 2849, Appliances                                                                                                                                   |     |           |                                            |               |                     |              |                                                                         |   |   |                                    |                        |                         |               |                |        |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----|-----------|--------------------------------------------|---------------|---------------------|--------------|-------------------------------------------------------------------------|---|---|------------------------------------|------------------------|-------------------------|---------------|----------------|--------|
| When completing this form, do not delete or alter any columns or workbook tabs.                                                                                             |     |           |                                            |               |                     |              |                                                                         |   |   |                                    |                        |                         |               |                |        |
| #                                                                                                                                                                           | Qty | FID Para. | FID Item Code / Description                | Vendor Quoted | Product Line Quoted | Model Quoted | Nominal Dimensions For Information Only<br>Provide dimensions in inches |   |   | GSA Contract Number OR Open Market | GSA Contract Unit Cost | GSA Contract Total Cost | HNC Unit Cost | HNC Total Cost |        |
|                                                                                                                                                                             |     |           |                                            |               |                     |              | W                                                                       | H | D |                                    |                        |                         |               |                |        |
| 1                                                                                                                                                                           | 100 | 8.2.a     | AP03: Refrigerator Freezer, 10 cu.ft.      |               |                     |              |                                                                         |   |   |                                    |                        | \$0.00                  |               | \$0.00         |        |
| 2                                                                                                                                                                           | 10  | 8.3.a     | AP04: Refrigerator Freezer, 18-19.5 cu.ft. |               |                     |              |                                                                         |   |   |                                    |                        | \$0.00                  |               | \$0.00         |        |
| 3                                                                                                                                                                           | 150 | 8.7       | AP16: Top Load Washing Machine             |               |                     |              |                                                                         |   |   |                                    |                        | \$0.00                  |               | \$0.00         |        |
| 4                                                                                                                                                                           | 130 | 8.8.a     | AP18: Electric Dryer                       |               |                     |              |                                                                         |   |   |                                    |                        | \$0.00                  |               | \$0.00         |        |
| Furniture Subtotals:                                                                                                                                                        |     |           |                                            |               |                     |              | Open Market:                                                            |   |   | \$0.00                             | GSA Cost:              |                         |               | \$0.00         | \$0.00 |
| Please note, if one or more of the boxes above are in amber or red, please refer to RFQ, Sect. J, Instruction to Quoters for requirements for Open Market items.            |     |           |                                            |               |                     |              |                                                                         |   |   |                                    |                        |                         |               |                |        |
| Installation & Shipping:                                                                                                                                                    |     |           |                                            |               |                     |              |                                                                         |   |   |                                    |                        |                         |               |                |        |
| Shipping (CONUS)                                                                                                                                                            |     |           |                                            |               |                     |              |                                                                         |   |   |                                    |                        |                         |               |                |        |
| Commercial Shipping (OCONUS)                                                                                                                                                |     |           |                                            |               |                     |              |                                                                         |   |   |                                    |                        |                         |               |                |        |
| Tariffs                                                                                                                                                                     |     |           |                                            |               |                     |              |                                                                         |   |   |                                    |                        |                         |               |                |        |
| Offload Only                                                                                                                                                                |     |           |                                            |               |                     |              |                                                                         |   |   |                                    |                        |                         |               |                |        |
| GRAND TOTAL:                                                                                                                                                                |     |           |                                            |               |                     |              |                                                                         |   |   |                                    |                        |                         | \$0.00        |                |        |
| Do not alter any formulas in shaded cells                                                                                                                                   |     |           |                                            |               |                     |              |                                                                         |   |   |                                    |                        |                         |               |                |        |
| If part of an item is on GSA Contract and part is open market, Vendor shall provide a description, model, and cost of open market item(s) on the same line as the GSA item. |     |           |                                            |               |                     |              |                                                                         |   |   |                                    |                        |                         |               |                |        |
| GSA Contract Unit Cost is the cost provided on GSA schedule per item. HNC Unit Cost is the cost provided to HNC per item.                                                   |     |           |                                            |               |                     |              |                                                                         |   |   |                                    |                        |                         |               |                |        |

| USAG DAEGU, Bldg 593, Appliances                                                                                                                                            |     |           |                                            |               |                     |              |                                                                         |   |   |                                    |                        |                         |               |                |        |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----|-----------|--------------------------------------------|---------------|---------------------|--------------|-------------------------------------------------------------------------|---|---|------------------------------------|------------------------|-------------------------|---------------|----------------|--------|
| When completing this form, do not delete or alter any columns or workbook tabs.                                                                                             |     |           |                                            |               |                     |              |                                                                         |   |   |                                    |                        |                         |               |                |        |
| #                                                                                                                                                                           | Qty | FID Para. | FID Item Code / Description                | Vendor Quoted | Product Line Quoted | Model Quoted | Nominal Dimensions For Information Only<br>Provide dimensions in inches |   |   | GSA Contract Number OR Open Market | GSA Contract Unit Cost | GSA Contract Total Cost | HNC Unit Cost | HNC Total Cost |        |
|                                                                                                                                                                             |     |           |                                            |               |                     |              | W                                                                       | H | D |                                    |                        |                         |               |                |        |
| 1                                                                                                                                                                           | 232 | 8.2.b     | AP03: Refrigerator Freezer, 10 cu.ft.      |               |                     |              |                                                                         |   |   |                                    |                        | \$0.00                  |               | \$0.00         |        |
| 2                                                                                                                                                                           | 20  | 8.3.b     | AP04: Refrigerator Freezer, 18-19.5 cu.ft. |               |                     |              |                                                                         |   |   |                                    |                        | \$0.00                  |               | \$0.00         |        |
| 3                                                                                                                                                                           | 104 | 8.7       | AP16: Top Load Washing Machine             |               |                     |              |                                                                         |   |   |                                    |                        | \$0.00                  |               | \$0.00         |        |
| 4                                                                                                                                                                           | 104 | 8.8.b     | AP18: Electric Dryer                       |               |                     |              |                                                                         |   |   |                                    |                        | \$0.00                  |               | \$0.00         |        |
| Furniture Subtotals:                                                                                                                                                        |     |           |                                            |               |                     |              | Open Market:                                                            |   |   | \$0.00                             | GSA Cost:              |                         |               | \$0.00         | \$0.00 |
| Please note, if one or more of the boxes above are in amber or red, please refer to RFQ, Sect. J, Instruction to Quoters for requirements for Open Market items.            |     |           |                                            |               |                     |              |                                                                         |   |   |                                    |                        |                         |               |                |        |
| Installation & Shipping:                                                                                                                                                    |     |           |                                            |               |                     |              |                                                                         |   |   |                                    |                        |                         |               |                |        |
| Shipping (CONUS)                                                                                                                                                            |     |           |                                            |               |                     |              |                                                                         |   |   |                                    |                        |                         |               |                |        |
| Commercial Shipping (OCONUS)                                                                                                                                                |     |           |                                            |               |                     |              |                                                                         |   |   |                                    |                        |                         |               |                |        |
| Tariffs                                                                                                                                                                     |     |           |                                            |               |                     |              |                                                                         |   |   |                                    |                        |                         |               |                |        |
| Offload Only                                                                                                                                                                |     |           |                                            |               |                     |              |                                                                         |   |   |                                    |                        |                         |               |                |        |
| GRAND TOTAL:                                                                                                                                                                |     |           |                                            |               |                     |              |                                                                         |   |   |                                    |                        |                         | \$0.00        |                |        |
| Do not alter any formulas in shaded cells                                                                                                                                   |     |           |                                            |               |                     |              |                                                                         |   |   |                                    |                        |                         |               |                |        |
| If part of an item is on GSA Contract and part is open market, Vendor shall provide a description, model, and cost of open market item(s) on the same line as the GSA item. |     |           |                                            |               |                     |              |                                                                         |   |   |                                    |                        |                         |               |                |        |
| GSA Contract Unit Cost is the cost provided on GSA schedule per item. HNC Unit Cost is the cost provided to HNC per item.                                                   |     |           |                                            |               |                     |              |                                                                         |   |   |                                    |                        |                         |               |                |        |

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**Furniture Item Descriptions (FID)**

**Housing Furnishings Program**



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## **1.0 GENERAL**

### **1.1 Cut Sheets**

Cut sheets are required for all items in this RFQ. A blanket statement that FID requirements are met shall be unacceptable. All required items and features submitted shall be on a current GSA schedule contract with the exception of UNICOR products. A copy of the current GSA scheduled pricing shall be submitted along with the cut sheets for this RFQ. Cut sheets shall conform to the following requirements to be considered acceptable for this RFQ:

- a. Shall be legible with highlighted model numbers, dimensions, warranty information, and all salient features required.
- b. Cut sheets which have more than one model, size, type, or which show statement of line options shall be clearly marked or highlighted to show the model, size, type, and all salient features proposed.
- c. Shall clearly state all required features that have been provided. List all the features if printed literature is not available. The features shall be listed on the cut sheet with the name, phone number, and company of the person who is providing the information.
- d. Shall clearly state GSA schedule contract numbers, FID item number, name brand, and model numbers for all items quoted.
- e. Shall include line drawings or images that address all required features.
- f. Shall be provided in 1-3 searchable PDF documents or other type of searchable documents. PDFs created using scanned documents shall use text recognition, e.g., OCR, to ensure search functions are enabled.
- g. Shall be assembled and labeled in numerical order based on the FID section number.
- h. Label each PDF file with the pages contained within, e.g., Vendor's cutsheets pgs. 1-10, Vendor's cutsheets pgs. 11-25, etc.

### **1.5 Electrical**

When the requirement is for 208V and quoter submits a 240V appliance, both 208V and 240V must be clearly indicated on manufacturer's published documentation. If the submitted published documentation indicates only 240V, the item will be considered non-conforming and will not be found technically acceptable.

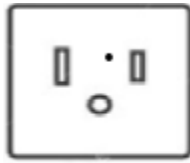
Unless noted otherwise in FID, all electrical requirements shall meet the following:

- a. Standard: 120 V, 60 Hz.
- b. Dryer: 208 V, 60 Hz. (Bldg 593)
- c. Dryer: 240 V, 60 Hz. (Bldg 2849)
- d. Plug Type:

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type B

Standard Plug Type



Dryer

#### 1.6 Model Numbers

Models should be referenced as an example of desired salient features only and not for any other purpose or intent.

### 2.0-7.0 NOT USED

## 8.0 APPLIANCES

Shall be UL listed. Manufacturer's warranty shall be provided. Contractor shall verify onsite that clearances are adequate for appliances.

#### 8.1 Not Used

##### 8.2.a AP03: Refrigerator Freezer, 10 cu.ft. (Bldg 2849)

- Microfridge - 10.0(L/R)MF4RW Absocold - ARD1033FW, or equal.
  - a. Shall be maximum 24"W x 28"D x 59"H.
  - b. Shall have capacity of 10.0–10.5 cu.ft.
  - c. Shall have 2 doors with separate refrigerator and freezer compartments.
  - d. Shall have at minimum the following features:
    - i. 2 Full width adjustable shelves in the main compartment
    - ii. 1 Crisper
    - iii. 3 Shelves in the door
    - iv. 1 Full width shelf in the freezer compartment
  - e. Freezer shall be frost free or have auto defrost.
  - f. Door handle shall be on the left.
  - g. Color shall be white.
  - h. Provide minimum 10 year warranty on the refrigerator/freezer sealed system and compressor. Provide minimum 2 year warranty on all remaining parts.

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#### **8.2.b AP03: Refrigerator Freezer, 10 cu.ft. (Bldg 593)**

- Microfridge - 10.0(L/R)MF4RW Absocold - ARD1033FW, or equal.
- a. Shall be maximum 24"W x 28"D x 59"H.
- b. Shall have capacity of 10.0–10.5 cu.ft.
- c. Shall have 2 doors with separate refrigerator and freezer compartments.
- d. Shall have at minimum the following features:
  - i. 2 Full width adjustable shelves in the main compartment
  - ii. 1 Crisper
  - iii. 3 Shelves in the door
  - iv. 1 Full width shelf in the freezer compartment
- e. Freezer shall be frost free or have auto defrost.
- f. Doors shall be installed hinged 50% on the left and 50% on the right.
- g. Color shall be white.
- h. Provide minimum 10 year warranty on the refrigerator/freezer sealed system and compressor. Provide minimum 2 year warranty on all remaining parts.

#### **8.3.a AP04: Refrigerator Freezer, 18-19.5 cu.ft. (Bldg 2849)**

- GE - GTE19DTNRWW, Frigidaire - FFHT1814WW, Whirlpool – WRT318FZDW, or equal.
- a. Shall be maximum 30"W x 35"D x 67"H.
- b. Shall have capacity of 18-19.5 cu.ft.
- c. Shall have 2 doors with separate freezer compartment.
- d. Shall have at minimum the following features:
  - i. 2 Full width adjustable shelves in the main compartment
  - ii. 2 Crispers
  - iii. 3 Shelves in the door
  - iv. 1 Full width shelf in the freezer compartment
  - v. 2 Shelves in the freezer compartment
- e. Freezer shall be frost free or have auto defrost.
- f. Door handle shall be on the left.
- g. Color shall be white.
- h. Provide minimum 1 year warranty on parts and labor.

#### **8.3.b AP04: Refrigerator Freezer, 18-19.5 cu.ft. (Bldg 593)**

- GE - GTE19DTNRWW, Frigidaire - FFHT1814WW, Whirlpool – WRT318FZDW, or equal.
- a. Shall be maximum 30"W x 35"D x 67"H.

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### **Pacific Multi Installation, Yongsan Bldg 2849, Daegu Bldg 593, Appliances**

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- b. Shall have capacity of 18-19.5 cu.ft.
- c. Shall have 2 doors with separate freezer compartment.
- d. Shall have at minimum the following features:
  - i. 2 Full width adjustable shelves in the main compartment
  - ii. 2 Crispers
  - iii. 3 Shelves in the door
  - iv. 1 Full width shelf in the freezer compartment
  - v. 2 Shelves in the freezer compartment
- e. Freezer shall be frost free or have auto defrost.
- f. Doors shall be installed hinged 50% on the left and 50% on the right.
- g. Color shall be white.
- h. Provide minimum 1 year warranty on parts and labor.

#### **8.4-8.6 Not Used**

#### **8.7 AP16: Top Load Washing Machine**

- Whirlpool - CAE2795FQ, Maytag - MAT23MNAWW, Speed Queen - LWNE22SP115TW01, or equal.
- a. Shall be maximum 27"W x 28"D x 44.5"H.
- b. Shall have minimum capacity of 3.1 cu.ft.
- c. Shall be top load.
- d. Shall be commercial rated and warranted for laundromat type or community housing installations.
- e. No coin box shall be provided.
- f. Shall have minimum of 3 load sizes or automatic load sensor.
- g. Provide fabric softener dispenser.
- h. Provide all supply hoses, drain lines, connectors, etc. for a functional unit.
- i. Color shall be white.
- j. Provide minimum 2 year warranty on parts.

#### **8.8.a AP18: Electric Dryer (Bldg 2849)**

- Whirlpool - CEM2795JQ, Maytag - MDE20MNBYW, Speed Queen - LDEE7RGS173TW01, or equal.
- a. Shall be maximum 27"W x 30"D x 45"H.
- b. Shall have minimum capacity of 7.0 cu.ft.
- c. Shall be electric.
- d. Shall be commercial rated and warranted for laundromat type or community housing installations.
- e. No coin box shall be provided.

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- f. Shall be the same manufacturer and have matching design and aesthetics as washer provided.
- g. Provide front or door mounted lint screen.
- h. Provide all connectors, vent kits, etc. for a functional unit.
- i. Provide a 4 wire cord.
- j. Color shall be white.
- k. Provide minimum 2 year warranty on parts.

**8.8.b AP18: Electric Dryer (Bldg 593)**

- Whirlpool - CEM2795JQ, Maytag - MDE20MNBW with W10206352A element, Speed Queen - LDE30RGS173TW01, or equal.
- a. Shall be maximum 27"W x 30"D x 45"H.
- b. Shall have minimum capacity of 7.0 cu.ft.
- c. Shall be electric.
- d. Shall be commercial rated and warranted for laundromat type or community housing installations.
- e. No coin box shall be provided.
- f. Shall be the same manufacturer and have matching design and aesthetics as washer provided.
- g. Provide front or door mounted lint screen.
- h. Provide all connectors, vent kits, etc. for a functional unit.
- i. Provide a 4 wire cord.
- j. Color shall be white.
- k. If product is 208V/240V, then unit shall be provided with all necessary parts, to include conversion kits and element, to ensure the unit will operate with the building power.
- l. Provide minimum 2 year warranty on parts.

**END OF FID**

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**Statement of Work - Furnishings in Warehouse**  
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**1. GENERAL**

- 1.1 Contractor shall provide all necessary materials, equipment, labor, supervision, and management to: (1) coordinate delivery; (2) load and unload; (3) secure and store, as designated; and (4) properly dispose of any associated packaging/crating materials.
- 1.2 Awarded Contractor is responsible for verifying all existing field conditions, i.e., electrical power including, but not limited to, voltage, hertz, amperage, and outlets at each building through the Technical Representative.
- 1.3 The Technical Representative (TR) for this project is as shown in Table 1 of this document.
- 1.4 The contractor shall provide a digital color board of all furniture, finishes, and fabrics to the TR for reference prior to manufacturing.
- 1.5 Upon final approval of the customer, the vendor shall reserve adequate quantities of fabrics from the manufacturer as soon as possible to avoid delays due to “out of stock” and/or “discontinued” fabrics.
- 1.6 If the awarded fabric is discontinued after award, the vendor shall contact the HNC PM to develop a path forward.

**2. DELIVERY**

- 2.1 The Contractor shall contact the TR at least 15 working days prior to shipping. The Contractor shall coordinate item delivery from all sub-contractors to minimize the number of deliveries.
- 2.2 In the event that a delay in delivery is requested by the TR, the Contractor shall notify the Contracting Officer within 1 working day.
- 2.3 The Contractor shall provide the TR with a minimum of 48 hour notification as to the date and time that the trucks will be arriving. The Contractor shall also provide email notification as to the date and time the trucks will be arriving to: [furnishinginvoices@usace.army.mil](mailto:furnishinginvoices@usace.army.mil) at least 48 hours prior to scheduled arrival time.
- 2.4 Contractor must ensure that the driver of the delivery vehicle has copies of the Delivery Order (contract) for the items being delivered in order to gain entry to the facility.

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- 2.5 Drivers of the delivery vehicles shall not attempt to deliver any items before the scheduled delivery date. In the event the delivery date falls on a Saturday, Sunday, or federally recognized holiday, the delivery date shall be the next workday after the Saturday, Sunday, or holiday.
- 2.6 Shipping Label shall read as specified in Table 1 of this document.
- 2.7 Items shall be labeled with the building number(s) provided in Contract Line Item (CLIN) 0001, unless otherwise noted in this paragraph.

**3. RECEIVE AND UNLOAD**

- 3.1 Contractor shall deliver items between the hours specified in Table 1. The Contractor may work outside this time frame with prior approval of the TR.
- 3.2 All unloaded items shall be properly stored by the end of the workday.
- 3.3 The Contractor shall verify and inspect the wrapping/crating of all items. Any problems (damage/overage/shortage) shall be brought to the attention of the TR. The Contractor shall store damaged items in the location designated by the TR. The TR may require the Contractor to open a damaged container to ensure the actual item is unharmed.
- 3.4 The Contractor shall maintain a complete file of all documents relating to each discrepancy. Copies of discrepancy reports shall be forwarded to the TR daily.
- 3.5 The Contractor shall repair or coordinate for replacement of damaged, defective, or missing items.

**4. PLACE AND INSTALL**

- 4.1 Contractor shall place items in building(s) noted in CLIN 0001 of the contract.
- 4.2 The Contractor shall complete installation of furnishings under this Statement of Work in the time period specified.

**5. PROTECTION OF PROPERTY**

- 5.1 The Contractor shall protect all items from damage. The Contractor shall take precaution against damage to the building, grounds, and other items already existing. The Contractor shall repair or replace any items, buildings, or grounds damaged due to negligence and/or direct action by the Contractor using



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materials of the same quality, size, texture, and color to match adjacent existing work.

- 5.2 The Contractor shall be responsible for security of the area in which work is being performed and prior to completion and transfer to the Government. The Contractor shall maintain accountability and control of any keys provided and shall return them to the TR upon completion of work.

- 5.3 Material-handling equipment shall have rubber wheels.

**6. PRODUCT DOCUMENTATION**

- 6.1 The Contractor shall ensure that all owner's manuals, warranty information, assembly instructions, maintenance and care instructions, operating instructions, and any other information is provided to the TR upon completion of the installation. Documentation that is packed in boxes with the item may remain in the box. It is not necessary to open the boxes to retrieve the product documentation.

- 6.2 The Contractor shall collect special assembly tools, the security hardware wrench, and any spare parts provided with the furnishings, unless packed in box with item, and turn them over to the TR.

**7. CLEANUP**

- 7.1 The Contractor shall be responsible for the removal and disposal of all trash connected with delivery of the furniture and other items under this contract.

**8. SAFETY**

- 8.1 Safety Compliance Requirements. Contractor shall comply with FAR 52.236-13 Accident Prevention and execute all work in accordance with (IAW) the latest version of Safety Manual EM 385-1-1 per base contract.
- 8.2 Site Visit Accident Prevention Plan (SVAPP). A SVAPP is required if an APP with a site/survey activity hazard analysis (AHA) has not been provided and accepted by the furnishings program CEHNC KO in coordination with (ICW) CEHNC Safety and Occupational Health Office (SOHO). The SVAPP is intended and necessary for any site visit not covered by an APP and these site visits shall be for visual inspection/observation or office type work only. If work must be performed (i.e., metering, work on energized equipment), an Accident Prevention Plan (APP) must be submitted and accepted.

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- 8.3 Accident Prevention Plan. The APP shall follow the minimum requirements of EM 385-1-1 Chapter 2-7 and this PWS. Follow the mandatory ENG Form 6293 (Accident Prevention Plan Worksheet). The APP must be submitted and accepted by the CEHNC KO ICW CEHNC SOHO prior to starting any work at the site. The contractor is responsible for preparing an APP per EM 385-1-1 for all work that goes beyond the scope of a site. The completed APP shall be submitted to the KO Furnishings Invoice box at least thirty (30) business days prior to field work performance. Field work shall not take place until the APP has been submitted, reviewed, and accepted by the CEHNC Safety Office.
- 8.4 Contractor shall verify with the controlling installation, the applicability, and requirements for emergency procedures, permit required work procedures, and hazardous environments and waste disposal. These findings shall be incorporated into the APP.
- 8.5 Activity Hazard Analysis (AHA). All AHAs shall be written in accordance with section 6 in each applicable chapter in EM 385-1-1. The identification and proof of qualification for competent/qualified persons (e.g., Confined Space, Electrician, Crane Operator, etc.) and proof of qualification shall be included IAW EM 385-1-1 Chapter 2-6. d(4)(g). Define the steps to be performed for the activity/task/DFOW and the work sequences (for example, site conditions, materials, personnel) needed. Job steps should be detailed so that the reader clearly understands how that job will be accomplished (for example, how the part will be installed or removed, anticipated voltages, quantities of chemicals utilized, equipment utilized to accomplish the task, heights being accessed).
- 8.6 Site-Specific Addendum (SSA). SSAs are required for each site if work will be conducted on two or more distinct sites. The SSAs shall be submitted to the KO Furnishings invoice box for review and acceptance by the CEHNC Safety Office prior to work starting. Each SSA shall contain detailed site-specific information only applicable to a specific location. It shall be attached to the APP as an appendix and be readily available on the jobsite.
- 8.7 Safety document resubmittal shall include the original local SOHO comments with detailed responses (Form 7 or 4025) and highlight all changes.
- 8.8 Any Proposals, Change Orders, and Contract Modifications shall be verified that they are covered under the current accepted APP. If the pending work effort is NOT covered under the initial task order APP, the contractor shall submit, for government review and acceptance, an addendum to the APP.

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- 8.9 Notifications and Reports. All accidents and near misses will be reported in accordance with EM 385-1-1 Table 2-1. Most current version of the ENG Form 3394 Aug 2021 shall be used for all reporting measures. Failure to comply with these requirements will be reflected on CPARS (If applicable).
- 8.10 Monthly Exposure Hours Report. This report is a compilation of employee-hours worked each month for all site workers, both prime and subcontractors. Hours associated with administrative activities such as payroll, human resource, service order managers/technicians, etc., are not counted. Exposure hours shall be submitted to HNC Contracting Office (CT). The data must be posted/submitted not later than 10 calendar days after the end of each month. Exposure data consists of man-hours expended in direct performance of the work performed on the jobsite. The monthly submission shall be broken down by Contract and identify exposure hours for each Contract. If no hours are worked on the project/task, a report showing zero (0) is required. Contractors should report monthly exposure hours by using the Excel Exposure Hour Report via email to \*either contract specialist or PgM.
- 8.11 Prime Contractor Corporate Safety Official / Corporate Official (CSO/CO). This contract requires a minimum of one Corporate Safety Official / Corporate Official to manage and oversee the implementation of the Prime Contractor's Safety Program. The CSO or CO shall conduct roles and responsibilities listed in EM 385-1-1 (2024) Chapter 2-4. f.
- 8.12 Site Safety and Health Officer (SSHO). No work shall be conducted at the site of the work until an SSHO (L2 / L3) is present as described and EM 385-1-1 (2024) Chapter 2-8. b. L2s are required for this project that include work that includes LOTO (208V or above), Fall Protection, Confined Space, Use of LHE, Scaffolding, or any other higher hazard activity. L3 is acceptable for any phases of work outside of what is listed above to include office work, providing furniture/equipment support, the receiving and unloading of materials/furniture, or any other low hazard activities. L2/L3 are only permitted on projects with a residual risk of low or medium.
- 8.13 The SSHO on site must be employed by the prime contractor unless otherwise approved by the KO/COR ICW CEHNC SOHO. If a subcontractor employee is allowed, SSHOs must work under direction of the prime contractors CSO or CO equivalent (CSO or CO does not need to be onsite) from the Prime Contractor. The APP shall include discussion as to how the CSO or CO will ensure the L2 and/or L3 is/are implementing the requirements of the prime contractor's safety program, EM 385-1-1, OSHA, consensus standards, any additional local laws and regulations, and all accepted safety plans. This shall include but is not

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limited to the review of site documentation, site audits, training, meetings, and accident reports.

- 8.14 After Hours Work/Multiple Shifts. Planned after hours work or multiple shifts like dual shifts or scheduled work designed to not impact the customer is considered normal shift operations and shall still ensure that an SSHO, as required by scope of work, is on-site while work is being performed.
- 8.15 Multiple sites / Locations outside of 45 minutes: shall still ensure that an L2 is on the main site while work is being performed but would additionally need an L3 or L2 (depending on scope of work) for each location, however processes and procedures must be identified in the APP how communication and reporting will be established between the L3 and L2 for these evolutions.

## **9. AT-OPSEC**

- 9.1 General security requirements and guidance: The security requirements described below apply to all contract personnel (including employees of the prime Contractor ("Contractor") and all subcontractor employees) supporting the performance requirements of this contract. The Contractor is responsible for compliance with these security requirements. Questions regarding security matters shall be addressed to the designated Government representative (e.g., Contracting Officer Representative (COR), Requiring Activity (RA) representative, or Contracting Officer (if a COR or other RA representative is not appointed)). Contract personnel are critical to the overall security and safety of US Army Corps of Engineers (USACE) installations, facilities and activities, and security awareness training contributes to those efforts. The Department of Defense (DoD) and Army security training requirements specified below, if applicable, are performance requirements; all applicable contract personnel shall complete initial training within 30 days of contract award or the date new contract personnel begin performance on the contract. Within five business days from the completion of training, the Contractor shall provide written documentation (e.g., email or memorandum) to the Government representative. The documentation shall include the names of contract personnel trained and which training they completed; the Contractor shall maintain training records as part of their contract files and be prepared to provide copies of training certificates to the Government representative. Contractor personnel and vehicles are subject to search when entering federal installations. Additionally, all contract personnel shall comply with Force Protection Condition (FPCON) measures, Random Antiterrorism Measures (commonly referred to as "RAMs"), and Health Protection Condition (HPCON) measures. The Contractor is responsible for meeting performance requirements during elevated FPCON and/or HPCON levels in accordance with

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- applicable RA plans and procedures --this includes identifying mission essential and non-mission essential personnel. In addition to the changes otherwise authorized by the changes clause of this contract, should the FPCON or HPCON levels at any individual facility or installation change, the Government may implement security changes that affect contract personnel. The Contractor shall ensure all contract personnel are aware of their security responsibilities, including any site-specific requirements identified in local policies or procedures.
- 9.2 Suspicious Activity Reporting training (e.g. iWATCH, CorpsWatch, or See Something, Say Something): All contract personnel shall receive initial and annual refresher training from the RA representative on the local suspicious activity reporting program. This locally developed training provides contract personnel with general information on suspicious behavior, and guidance on reporting suspicious activity to the project manager, security representative or law enforcement entity.
- 9.3 Escorting in classified and/or sensitive areas: In accordance with applicable regulations, all contract personnel who do not possess the appropriate security clearance or access privileges will be escorted in areas where they may be exposed to classified information or operations, sensitive information or activities, or restricted areas.
- 9.4 Pre-screen candidates using E-Verify Program: Contractors shall comply with the requirements set forth in FAR clause 52.222-54 Employment Eligibility Verification and FAR Subpart 22.18 in using the E-Verify Program at (<https://www.e-verify.gov/>) (website subject to change) to meet the contract employment eligibility requirements. The Vendor must ensure that the Candidate has two (2) valid forms of Government issued identification prior to enrollment to ensure the correct information is entered into the E-Verify system. Contractors are encouraged to cooperate with Federal and State agencies responsible for enforcing labor requirements to include eligibility for employment under United States immigration laws in accordance with FAR 22.102-1(i). An initial list of verified/eligible candidates shall be provided to the COR no later than three business days after the initial contract award. When contracts are with individuals, the individuals will be required to complete a Form I-9, Employment Eligibility Verification, and submit it to the Contracting Officer to become part of the official contract file.
- 9.5 All contractor and all associated sub-contractors' employees shall comply with applicable installation or facility access and local security policies and procedures (provided by government representative). The contractor shall also provide all information required for background checks or background investigation and to meet installation and MEDOCM access requirements to be accomplished by

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installation Provost Marshal Office, Director of Emergency Services or Security Office. Contractor workforce must comply with all personal identity verification requirements as directed by DoD, HQDA and/or local policy. In addition to the changes otherwise authorized by the changes clause of this contract, should the Force Protection Condition at any installation or facility change, the Government may require changes in contractor security matters or processes.

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**TABLE 1. Project Specific Information.**  
**Daegu, Bldg 593**

|                                                                                                                                    |                         |
|------------------------------------------------------------------------------------------------------------------------------------|-------------------------|
| Technical Representative:                                                                                                          | Kim, Tae Yon            |
| Tech. Rep. Phone:                                                                                                                  | 315-763-4589            |
| Tech. Rep. Email:                                                                                                                  | taeyon.kim4.in@army.mil |
|                                                                                                                                    |                         |
| Will the Building be Occupied During Install                                                                                       | No                      |
|                                                                                                                                    |                         |
| Delivery Type                                                                                                                      | N/A                     |
| If staged, how many rooms accessible per day?<br>(Min of 10-12 double occupancy rooms)                                             |                         |
| Acceptable Hours of Delivery:                                                                                                      | 0900-1600, 7hours       |
| Number of floors:                                                                                                                  |                         |
| Elevator Available for Use During Install                                                                                          |                         |
| Elevator Dimensions                                                                                                                |                         |
| <b>DLA Disposition Services: It is the responsibility of the TR to coordinate with DLA to ensure they are aware of the project</b> |                         |
| DLA Location:                                                                                                                      | N/A                     |
| Point of Contact Name:                                                                                                             |                         |
| Phone/Email:                                                                                                                       |                         |
| Address:                                                                                                                           |                         |
| Building Number                                                                                                                    |                         |
| Street Address                                                                                                                     |                         |
| City, State, Zip Code                                                                                                              |                         |
| Business Hours:                                                                                                                    |                         |
| Do they accept mattresses?:                                                                                                        | No                      |
| DLA Special Requirements (Pallets, Shrink Wrap):                                                                                   | N/A                     |

**All recyclable cardboard products to be delivered to:**

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|                                                                                                                                                                                                      |                                                                                                                                                                                   |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Address:                                                                                                                                                                                             |                                                                                                                                                                                   |
| Building Number                                                                                                                                                                                      | N/A                                                                                                                                                                               |
| Street Address                                                                                                                                                                                       |                                                                                                                                                                                   |
| City, State, Zip Code                                                                                                                                                                                |                                                                                                                                                                                   |
| Phone:                                                                                                                                                                                               |                                                                                                                                                                                   |
| <b>Access &amp; Delivery Information:</b>                                                                                                                                                            |                                                                                                                                                                                   |
| Security Requirements:                                                                                                                                                                               | Installation contractor will provide worker's names, driver's license, vehicle registration, vehicle insurance and number of personnel and vehicle type to obtain the access memo |
|                                                                                                                                                                                                      |                                                                                                                                                                                   |
| Shipping Label for Furniture:                                                                                                                                                                        | CAMP CARROLL Gate #2: #406-9,<br>Waegwan-ri, Waegwan-eup, Chilgok-gun,<br>Gyeongsangbuk-do                                                                                        |
| Physical Address:                                                                                                                                                                                    |                                                                                                                                                                                   |
| Building Number<br>Street Address<br>City,<br>State,<br>Zip Code                                                                                                                                     |                                                                                                                                                                                   |
| Shipping Label for Soft Goods (If different from furniture)                                                                                                                                          | N/A                                                                                                                                                                               |
|                                                                                                                                                                                                      |                                                                                                                                                                                   |
| Warehouse information:                                                                                                                                                                               |                                                                                                                                                                                   |
| Address:                                                                                                                                                                                             |                                                                                                                                                                                   |
| Building Number                                                                                                                                                                                      |                                                                                                                                                                                   |
| Street Address                                                                                                                                                                                       |                                                                                                                                                                                   |
| City, State, Zip Code                                                                                                                                                                                |                                                                                                                                                                                   |
| Items stored at warehouse location noted above, to be installed under this contract: example: if you have mattresses in your warehouse and the vendor needs to pick them up and install with the new |                                                                                                                                                                                   |



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|                                                            |  |
|------------------------------------------------------------|--|
| furnishings. Provide list of items and how many there are. |  |
|------------------------------------------------------------|--|

**Building Specific Information:**

|                                                                                                                                                                                                                  |                                                                                                                                                 |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------|
| Other Information such as truck parking, how close the truck can get to the building, can a vendor provided forklift be used on location, are the rooms accessible from the outside via a catwalk or the inside. | Truck parking is available on-site. We recommend the contractor utilize forklifts and lift trucks to facilitate efficient loading and unloading |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------|

**The fields required if furnishings/window treatments/hardware are being removed as part of this contract.**

|                                                                                                                                                                                                                                     |     |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----|
| Old furnishing to be delivered to: If DLA is being used, state that in this box. If the vendor needs to dispose of, please say so here.                                                                                             | N/A |
| List ALL furnishings to be removed: Be specific and list the item and how many there are. If Captains beds are being removed, list the size and number of drawers: If drop lid desk or Armoires are being removed, list dimensions. | N/A |
| Old window treatments and hardware to be delivered to: If vendor needs to dispose of, please say so here.                                                                                                                           | N/A |
| List <b>ALL</b> window treatment and hardware to be removed: List how many draperies or blinds. List type of blinds being removed.                                                                                                  | N/A |
|                                                                                                                                                                                                                                     |     |

**TABLE 2. Project Specific Information.**  
**Yongsan-Casey, Bldg 2849**

|                           |                         |
|---------------------------|-------------------------|
| Technical Representative: | Chon, Chong O           |
| Tech. Rep. Phone:         | 315-722-2089            |
| Tech. Rep. Email:         | chongo.chon.ln@army.mil |

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|                                                                                        |            |
|----------------------------------------------------------------------------------------|------------|
| Will the Building be Occupied During Install                                           | No         |
|                                                                                        | -          |
| Delivery Type                                                                          | Not Staged |
| If staged, how many rooms accessible per day?<br>(Min of 10-12 double occupancy rooms) | 12         |
| Acceptable Hours of Delivery:                                                          | 0800-1700  |
| Number of floors:                                                                      | 1          |
| Elevator Available for Use During Install                                              | No         |
| Elevator Dimensions                                                                    | N/A        |

**DLA Disposition Services: It is the responsibility of the TR to coordinate with DLA to ensure they are aware of the project**

|                                                  |     |
|--------------------------------------------------|-----|
| DLA Location:                                    | N/A |
| Point of Contact Name:                           |     |
| Phone/Email:                                     |     |
| Address:                                         |     |
| Building Number                                  |     |
| Street Address                                   |     |
| City, State, Zip Code                            |     |
| Business Hours:                                  |     |
| Do they accept mattresses?:                      | No  |
| DLA Special Requirements (Pallets, Shrink Wrap): | N/A |

**All recyclable cardboard products to be delivered to:**

|                       |     |
|-----------------------|-----|
| Address:              |     |
| Building Number       |     |
| Street Address        | N/A |
| City, State, Zip Code |     |
| Phone:                |     |

**Access & Delivery Information:**

|                        |  |
|------------------------|--|
| Security Requirements: |  |
|------------------------|--|

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|                                                                                                                                                                                                                                                                 |                                                                                                                             |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------|
|                                                                                                                                                                                                                                                                 | Installation Contractor will need to provide names/ID number and type. They will be escorted by DoD personnel from the FMO. |
| Shipping Label for Furniture:                                                                                                                                                                                                                                   | USAG Yongsan-Casey                                                                                                          |
| Physical Address:                                                                                                                                                                                                                                               | S-2849<br>Camp Castle North<br>APO, AP 96224                                                                                |
| Building Number<br>Street Address<br>City,<br>State,<br>Zip Code                                                                                                                                                                                                | 2849                                                                                                                        |
| Shipping Label for Soft Goods (If different from furniture)                                                                                                                                                                                                     | N/A                                                                                                                         |
|                                                                                                                                                                                                                                                                 |                                                                                                                             |
| Warehouse information:                                                                                                                                                                                                                                          |                                                                                                                             |
| Address:                                                                                                                                                                                                                                                        |                                                                                                                             |
| Building Number                                                                                                                                                                                                                                                 |                                                                                                                             |
| Street Address                                                                                                                                                                                                                                                  |                                                                                                                             |
| City, State, Zip Code                                                                                                                                                                                                                                           |                                                                                                                             |
| Items stored at warehouse location noted above, to be installed under this contract: example: if you have mattresses in your warehouse and the vendor needs to pick them up and install with the new furnishings. Provide list of items and how many there are. |                                                                                                                             |
| <b>Building Specific Information:</b>                                                                                                                                                                                                                           |                                                                                                                             |
| Other Information such as truck parking, how close the truck can get to the                                                                                                                                                                                     | Truck parking space is available, can use forklift.                                                                         |

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|                                                                                                                                      |  |
|--------------------------------------------------------------------------------------------------------------------------------------|--|
| building, can a vendor provided forklift be used on location, are the rooms accessible from the outside via a catwalk or the inside. |  |
|--------------------------------------------------------------------------------------------------------------------------------------|--|

**The fields required if furnishings/window treatments/hardware are being removed as part of this contract.**

|                                                                                                                                                                                                                                     |     |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----|
| Old furnishing to be delivered to: If DLA is being used, state that in this box. If the vendor needs to dispose of, please say so here.                                                                                             | N/A |
| List ALL furnishings to be removed: Be specific and list the item and how many there are. If Captains beds are being removed, list the size and number of drawers: If drop lid desk or Armoires are being removed, list dimensions. | N/A |
| Old window treatments and hardware to be delivered to: If vendor needs to dispose of, please say so here.                                                                                                                           | N/A |
| List <b>ALL</b> window treatment and hardware to be removed: List how many draperies or blinds. List type of blinds being removed.                                                                                                  | N/A |
|                                                                                                                                                                                                                                     |     |

**END OF SOW**

## Contract Clauses

### FAR Clauses Incorporated by Reference

| Number    | Title                                                                               | Effective Date | Alternate Deviation | Variation Effective Date |
|-----------|-------------------------------------------------------------------------------------|----------------|---------------------|--------------------------|
| 52.203-19 | Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements. | 2017-01        |                     |                          |
| 52.204-13 | System for Award Management-Maintenance. (Deviation 2026-O0038)                     | 2026-02        |                     |                          |
| 52.222-50 | Combating Trafficking in Persons. (Deviation 2026-O0038)                            | 2026-02        |                     |                          |
| 52.226-8  | Encouraging Contractor Policies to Ban Text Messaging While Driving.                | 2024-05        |                     |                          |
| 52.232-33 | Payment by Electronic Funds Transfer-System for Award Management.                   | 2018-10        |                     |                          |
| 52.232-40 | Providing Accelerated Payments to Small Business Subcontractors.                    | 2023-03        |                     |                          |
| 52.233-3  | Protest after Award. (Deviation 2026-O0038)                                         | 2026-02        |                     |                          |
| 52.233-4  | Applicable Law for Breach of Contract Claim. (Deviation 2026-O0038)                 | 2026-02        |                     |                          |

**DFARS Clauses Incorporated by Reference**

| <b>Number</b> | <b>Title</b>                                                                                | <b>Effective Date</b> | <b>Alternate Deviation</b> | <b>Variation Effective Date</b> |
|---------------|---------------------------------------------------------------------------------------------|-----------------------|----------------------------|---------------------------------|
| 252.203-7000  | Requirements Relating to Compensation of Former DoD Officials.                              | 2011-09               |                            |                                 |
| 252.203-7002  | Requirement to Inform Employees of Whistleblower Rights.                                    | 2022-12               |                            |                                 |
| 252.204-7018  | Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services. | 2023-01               |                            |                                 |
| 252.223-7008  | Prohibition of Hexavalent Chromium.                                                         | 2023-01               |                            |                                 |
| 252.225-7056  | Prohibition Regarding Business Operations with the Maduro Regime.                           | 2023-01               |                            |                                 |
| 252.232-7003  | Electronic Submission of Payment Requests and Receiving Reports.                            | 2018-12               |                            |                                 |
| 252.232-7010  | Levies on Contract Payments.                                                                | 2006-12               |                            |                                 |
| 252.247-7023  | Transportation of Supplies by Sea.                                                          | 2024-10               |                            |                                 |

**FAR Clauses Incorporated by Full Text**

| <b>Number</b> | <b>Title</b> | <b>Effective</b> | <b>Alternate</b> | <b>Variation</b> |
|---------------|--------------|------------------|------------------|------------------|
|---------------|--------------|------------------|------------------|------------------|

|          |                                                                                                    | <b>Date</b> | <b>Deviation</b> | <b>Effective<br/>Date</b> |
|----------|----------------------------------------------------------------------------------------------------|-------------|------------------|---------------------------|
| 52.212-4 | Terms and Conditions-<br>Commercial Products and<br>Commercial Services. (Deviation<br>2026-O0038) | 2026-02     |                  |                           |

Terms and Conditions-Commercial Products and Commercial Services (Feb 2026) (Deviation 2026-O0038)

(a) Definitions. The clause at Federal Acquisition Regulation (FAR) 52.202-1, Definitions, is incorporated by reference.

(b) Inspection/Acceptance. The Contractor shall only tender for acceptance those items that conform to the requirements of this contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of nonconforming supplies or reperformance of nonconforming services at no increase in contract price. If repair/replacement or reperformance will not correct the defects or is not possible, the Government may seek an equitable price reduction or adequate consideration for acceptance of nonconforming supplies or services. The Government must exercise its post acceptance rights-

(1) Within a reasonable time after the defect was discovered or should have been discovered; and

(2) Before any substantial change occurs in the condition of the item, unless the change is due to the defect in the item.

(c) Assignment. The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution, including any Federal lending agency in accordance with the Assignment of Claims Act (31 U.S.C. 3727). However, when a third party makes payment (e.g., use of the Governmentwide commercial purchase card), the Contractor may not assign its rights to receive payment under this contract.

(d) Changes. Changes in the terms and conditions of this contract may be made only by written

agreement of the parties.

(e) Disputes. This contract is subject to 41 U.S.C. chapter 71, Contract Disputes. Failure of the parties to this contract to reach agreement on any request for equitable adjustment, claim, appeal, or action arising under or relating to this contract shall be a dispute to be resolved in accordance with the clause FAR 52.233-1, Disputes, which is incorporated in this contract by reference. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any dispute arising under the contract.

(f) Excusable delays. The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence. Examples of occurrences include acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. When an excusable delay occurs, the Contractor shall-

(1) Notify the Contracting Officer in writing as soon as possible;

(2) Remedy the delay as quickly as possible; and

(3) Notify the Contracting Officer when the occurrence is over.

(g) Invoice. The Government will handle invoices according to the Prompt Payment Act (31 U.S.C. 3903) and 5 CFR part 1315. The Contractor shall submit invoices to the address designated in the contract to receive invoices. An invoice must include the information required by 5 CFR part 1315.9(b).

(h) Patent indemnity. The Contractor shall indemnify the Government and its officers, employees, and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to infringe, any United States or foreign patent, trademark, or copyright, arising out of the performance of this contract, provided the Contractor is reasonably notified of such claims and proceedings.

(i) Payment-

(1) Items accepted. Payment shall be made for items accepted by the Government that have been delivered to the delivery destinations set forth in this contract.

(2) Prompt payment. The Government will make payment in accordance with the Prompt



Payment Act ( 31 U.S.C. 3903) and prompt payment regulations at 5 CFR part 1315.

(3) Discount. In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date that appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(4) Overpayments. If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall-

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the-

(A) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable;

(D) Contractor point of contact; and

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(5) Interest.

(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, as provided in (i)(6)(v) of this clause, and then at the rate applicable for each six-month period as fixed by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) Final decisions. The Contracting Officer will issue a final decision as required by FAR part 33 if-

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt within 30 days;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see FAR part 32).

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a termination for cause.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on-

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures for interest credits prescribed in FAR part 32 in effect on the date of this contract.

(j) Risk of loss. Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the Government upon-

(1) Delivery of the supplies to a carrier, if transportation is f.o.b. origin; or

(2) Delivery of the supplies to the Government at the destination specified in the contract, if transportation is f.o.b. destination.

(k) Taxes. The contract price includes all applicable Federal, State, and local taxes and duties.

(l) Termination for the Government's convenience. The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred which reasonably could have been avoided.

(m) Termination for cause. The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. The Government will send a cure notice to the Contractor, unless the reason for the termination is late delivery. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

(n) Title. Unless specified elsewhere in this contract, title to items furnished under this contract shall pass to the Government upon acceptance, regardless of when or where the Government takes physical possession.

(o) Warranty. The Contractor warrants and implies that the items delivered under this contract are merchantable and fit for use for the particular purpose described in this contract.

(p) Limitation of liability. Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or

deficiencies in accepted items.

(q) Compliance with laws unique to Government contracts. The Contractor agrees to comply with 31 U.S.C. 1352 relating to limitations on the use of appropriated funds to influence certain Federal contracts; 40 U.S.C. chapter 37, Contract Work Hours and Safety Standards; 41 U.S.C. chapter 87, Kickbacks; 49 U.S.C. 40118, Government-financed air transportation; and 41 U.S.C. chapter 21 relating to procurement integrity.

(r) Order of precedence. Any inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:

(1) The schedule of supplies/services;

(2) The Disputes, Payments, Invoice, Compliance with Laws Unique to Government Contracts, and Unauthorized Obligations paragraphs of this clause;

(3) Other contract clauses incorporated in the solicitation or contract;

(4) Addenda to this solicitation or contract;

(5) Solicitation provisions incorporated in the solicitation;

(6) Other paragraphs of this clause;

(7) Other documents, exhibits, and attachments; and

(8) The specification.

(s) Unauthorized obligations.

(1) Except as stated in paragraph (s)(2) of this clause, when any supply or service acquired under this contract is subject to any End User License Agreement (EULA), Terms of Service (TOS), or similar legal instrument or agreement, that includes any clause requiring the Government to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

(i) Any such clause is unenforceable against the Government.

(ii) Neither the Government nor any Government-authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the EULA, TOS, or similar legal instrument or agreement. If the EULA, TOS, or similar legal instrument or agreement is invoked through an "I agree" click box or other comparable mechanism (e.g., "click-wrap" or "browse-wrap" agreements), execution does not bind the Government or any Government authorized end user to such clause.

(iii) Any such clause is deemed to be stricken from the EULA, TOS, or similar legal instrument or agreement.

(2) Paragraph (s)(1) of this clause does not apply to indemnification by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

(t) Comptroller General examination of record. This paragraph applies if this contract was awarded using other than sealed bid procedures and is in excess of the simplified acquisition threshold on the date of award of this contract.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices, at all reasonable times, the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR part 4, longer period required by statute, or periods specified in other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This clause does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(u) Incorporation by reference. The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of clause)

#### **DFARS Clauses Incorporated by Full Text**

| <b>Number</b> | <b>Title</b>                                  | <b>Effective Date</b> | <b>Alternate Deviation</b> | <b>Variation Effective Date</b> |
|---------------|-----------------------------------------------|-----------------------|----------------------------|---------------------------------|
| 252.225-7001  | Buy American and Balance of Payments Program. | 2024-02               |                            |                                 |

#### **BUY AMERICAN AND BALANCE OF PAYMENTS PROGRAM-BASIC (FEB 2024)**

(a) Definitions. As used in this clause-

"Commercially available off-the-shelf (COTS) item"-

(1) Means any item of supply (including construction material) that is-

(i) A commercial product (as defined in paragraph (1) of the definition of "commercial product" in section 2.101 of the Federal Acquisition Regulation (FAR));

(ii) Sold in substantial quantities in the commercial marketplace; and

(iii) Offered to the Government, under a contract or subcontract at any tier, without modification, in the same form in which it is sold in the commercial marketplace; and

(2) Does not include bulk cargo, as defined in 46 U.S.C. 40102(4), such as agricultural products and petroleum products.

"Component" means an article, material, or supply incorporated directly into an end product.

"Critical component" means a component that is mined, produced, or manufactured in the United States and deemed critical to the U.S. supply chain. The list of critical components is at FAR 25.105.

"Critical item" means a domestic construction material or domestic end product that is deemed critical to the U.S. supply chain. The list of critical items is at FAR 25.105.

"Domestic end product" means-

(1) For an end product that does not consist wholly or predominantly of iron or steel or a combination of both-

(i) An unmanufactured end product mined or produced in the United States; or

(ii) An end product manufactured in the United States if-

(A) The cost of its qualifying country components and its components that are mined, produced, or manufactured in the United States exceeds 60 percent of the cost of all its components, except that the percentage will be 65 percent for items delivered in calendar years 2024 through 2028 and 75 percent for items delivered starting in calendar year 2029, unless an alternate percentage is established for a contract in accordance with FAR 25.101(d), or award is made before January 1, 2030, for a foreign end product that exceeds 55 percent domestic content (see Defense Federal Acquisition Regulation Supplement 225.103(b)(ii)). The cost of components includes transportation costs to the place of incorporation into the end product and U.S. duty (whether or not a duty-free entry certificate is issued). Components of unknown origin are treated as foreign. Scrap generated, collected, and prepared for processing in the United States is considered domestic. A component is considered to have been mined, produced, or manufactured in the United States (regardless of its source in fact) if the end product in which it is incorporated is manufactured in the United States and the component is of a class or kind for which the Government has determined that-

(1) Sufficient and reasonably available commercial quantities of a satisfactory quality are not mined, produced, or manufactured in the United States ; or

(2) It is inconsistent with the public interest to apply the restrictions of the Buy American statute; or

(B) The end product is a COTS item; or

(2) For an end product that consists wholly or predominantly of iron or steel or a combination of both, an end product manufactured in the United States, if the cost of iron and steel not produced in the United States or a qualifying country constitutes less than 5 percent of the cost of all the components used in the end product (produced in the United States or a qualifying country means that all manufacturing processes of the iron or steel must take place in the United States or a qualifying country, except metallurgical processes involving refinement of steel additives). The cost of iron and steel not produced in the United States or a qualifying country includes but is not limited to the cost of iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings, not produced in the United States or a qualifying country, utilized in the manufacture of the end product and a good faith estimate of the cost of all iron or steel components not produced in the United States or a qualifying country, excluding COTS fasteners. Iron or steel components of unknown origin are treated as foreign. If the end product contains multiple components, the cost of all the materials used in such end product is calculated in accordance with the explanation of cost of components in paragraph (1)(ii)(A) of this definition.

"End product" means those articles, materials, and supplies to be acquired under this contract for public use.

"Foreign end product" means an end product other than a domestic end product.

"Predominantly of iron or steel or a combination of both" means that the cost of the iron and steel content exceeds 50 percent of the total cost of all its components. The cost of iron and steel is the cost of the iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the product and a good faith estimate of the cost of iron or steel components excluding COTS fasteners.

"Qualifying country" means a country with a reciprocal defense procurement memorandum of understanding or international agreement with the United States in which both countries agree to remove barriers to purchases of supplies produced in the other country or services performed by sources of the other country, and the memorandum or agreement complies, where applicable, with the requirements of section 36 of the Arms Export Control Act (22 U.S.C. 2776) and with 10 U.S.C. 2457. Accordingly, the following are qualifying countries:

Australia

Austria

Belgium



Canada

Czech Republic

Denmark

Egypt

Estonia

Finland

France

Germany

Greece

Israel

Italy

Japan

Latvia

Lithuania

Luxembourg

Netherlands

Norway

Poland

Portugal

Slovenia

Spain

Sweden

Switzerland

Turkey

United Kingdom of Great Britain and Northern Ireland.

"Qualifying country component" means a component mined, produced, or manufactured in a qualifying country.

"Qualifying country end product" means-

(1) An unmanufactured end product mined or produced in a qualifying country; or

(2) An end product manufactured in a qualifying country if-

(i) The cost of the following types of components exceeds 60 percent of the cost of all its components, except that the percentage will be 65 percent for items delivered in calendar years 2024 through 2028 and 75 percent for items delivered starting in calendar year 2029, unless an alternate percentage is established for a contract:

(A) Components mined, produced, or manufactured in a qualifying country.

(B) Components mined, produced, or manufactured in the United States .

(C) Components of foreign origin of a class or kind for which the Government has determined that sufficient and reasonably available commercial quantities of a satisfactory quality are not mined, produced, or manufactured in the United States. Components of unknown origin are treated as foreign; or

(ii) The end product is a COTS item.

"Steel" means an alloy that includes at least 50 percent iron, between 0.02 and 2 percent carbon, and may include other elements.

" United States " means the 50 States, the District of Columbia , and outlying areas.

(b) This clause implements 41 U.S.C chapter 83, Buy American. In accordance with 41 U.S.C. 1907, the component test of the Buy American statute is waived for an end product that is a COTS item (see FAR 12.505(a)(1)). Unless otherwise specified, this clause applies to all line items in the contract.

(c) The Contractor shall deliver only domestic end products unless, in its offer, it specified delivery of other end products in the Buy American-Balance of Payments Program Certificate provision of the solicitation. If the Contractor certified in its offer that it will deliver a qualifying country end product, the Contractor shall deliver a qualifying country end product or, at the Contractor's option, a domestic end product.

(d) The contract price does not include duty for end products or components for which the Contractor will claim duty-free entry.

(End of clause)

252.232-7006      Wide Area WorkFlow Payment      2023-01  
Instructions.

#### WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) Definitions. As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) Electronic invoicing. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) WAWF access. To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) WAWF training. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) WAWF methods of document submission. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) WAWF payment instructions. The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) Document type. The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

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(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

\_\_\_\_\_

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2) ) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

#### Routing Data Table\*

| Field Name in WAWF  | Data to be entered in WAWF |
|---------------------|----------------------------|
| Pay Official DoDAAC | _____                      |
| Issue By DoDAAC     | _____                      |
| Admin DoDAAC        | _____                      |
| Inspect By DoDAAC   | _____                      |
| Ship To Code        | _____                      |
| Ship From Code      | _____                      |

Mark For Code \_\_\_\_\_  
Service Approver (DoDAAC) \_\_\_\_\_  
Service Acceptor (DoDAAC) \_\_\_\_\_  
Accept at Other DoDAAC \_\_\_\_\_  
LPO DoDAAC \_\_\_\_\_  
DCAA Auditor DoDAAC \_\_\_\_\_  
Other DoDAAC(s) \_\_\_\_\_

(\*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(\*\*Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) Payment request. The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) Receiving report. The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) WAWF point of contact.

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

\_\_\_\_\_

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

**Addendum to Contract Clauses****FAR Clauses Incorporated by Reference**

| <b>Number</b> | <b>Title</b>                                                                           | <b>Effective Date</b> | <b>Alternate Deviation</b> | <b>Variation Effective Date</b> |
|---------------|----------------------------------------------------------------------------------------|-----------------------|----------------------------|---------------------------------|
| 52.209-10     | Prohibition on Contracting With Inverted Domestic Corporations. (Deviation 2026-O0038) | 2026-02               |                            |                                 |
| 52.223-23     | Sustainable Products. (Deviation 2026-O0038)                                           | 2026-02               |                            |                                 |
| 52.232-90     | Fast Payment Procedure. (Deviation 2026-O0038)                                         | 2026-02               |                            |                                 |
| 52.244-6      | Subcontracts for Commercial Products and Commercial Services. (Deviation 2026-O0038)   | 2026-02               |                            |                                 |

**DFARS Clauses Incorporated by Reference**

| <b>Number</b> | <b>Title</b>                     | <b>Effective Date</b> | <b>Alternate Deviation</b> | <b>Variation Effective Date</b> |
|---------------|----------------------------------|-----------------------|----------------------------|---------------------------------|
| 252.232-7008  | Assignment of Claims (Overseas). | 1997-06               |                            |                                 |

**DFARS Clauses Incorporated by Full Text**

| <b>Number</b> | <b>Title</b> | <b>Effective Date</b> | <b>Alternate Deviation</b> | <b>Variation Effective Date</b> |
|---------------|--------------|-----------------------|----------------------------|---------------------------------|
|---------------|--------------|-----------------------|----------------------------|---------------------------------|

252.225-7021 Trade Agreements.

2024-02

## TRADE AGREEMENTS-BASIC (FEB 2024)

(a) Definitions. As used in this clause-

" Caribbean Basin country end product"-

(1) Means an article that-

(i) Is wholly the growth, product, or manufacture of a Caribbean Basin country; or

(ii) In the case of an article that consists in whole or in part of materials from another country, has been substantially transformed in a Caribbean Basin country into a new and different article of commerce with a name, character, or use distinct from that of the article or articles from which it was transformed. The term refers to a product offered for purchase under a supply contract, but for purposes of calculating the value of the end product includes services (except transportation services) incidental to its supply, provided that the value of those incidental services does not exceed the value of the product itself; and

(2) Excludes products, other than petroleum and any product derived from petroleum, that are not granted duty-free treatment under the Caribbean Basin Economic Recovery Act (19 U.S.C. 2703(b)). These exclusions presently consist of-

(i) Textiles, apparel articles, footwear, handbags, luggage, flat goods, work gloves, leather wearing apparel, and handloomed, handmade, or folklore articles that are not granted duty-free status in the Harmonized Tariff Schedule of the United States (HTSUS);

(ii) Tuna, prepared or preserved in any manner in airtight containers; and

(iii) Watches and watch parts (including cases, bracelets, and straps) of whatever type, including, but not limited to, mechanical, quartz digital, or quartz analog, if such watches or watch parts contain any material that is the product of any country to which the HTSUS column 2 rates of duty (HTSUS General Note 3(b)) apply.

"Commercially available off-the-shelf (COTS) item"-



(1) Means any item of supply (including construction material) that is-

(i) A commercial product (as defined in paragraph (1) of the definition of "commercial product" in section 2.101 of the Federal Acquisition Regulation);

(ii) Sold in substantial quantities in the commercial marketplace; and

(iii) Offered to the Government, under a contract or subcontract at any tier, without modification, in the same form in which it is sold in the commercial marketplace; and

(2) Does not include bulk cargo, as defined in 46 U.S.C. 40102(4), such as agricultural products and petroleum products.

"Component" means an article, material, or supply incorporated directly into an end product.

"Designated country" means-

(1) A World Trade Organization Government Procurement Agreement (WTO GPA) country (Armenia, Aruba, Australia, Austria, Belgium, Bulgaria, Canada, Croatia, Cyprus, Czech Republic, Denmark, Estonia, Finland, France, Germany, Greece, Hong Kong, Hungary, Iceland, Ireland, Israel, Italy, Japan, Korea (Republic of), Latvia, Liechtenstein, Lithuania, Luxembourg, Malta, Moldova, Montenegro, Netherlands, New Zealand, North Macedonia, Norway, Poland, Portugal, Romania, Singapore, Slovak Republic, Slovenia, Spain, Sweden, Switzerland, Taiwan (known in the World Trade Organization as "the Separate Customs Territory of Taiwan, Penghu, Kinmen, and Matsu" (Chinese Taipei)), Ukraine, or the United Kingdom);

(2) A Free Trade Agreement country (Australia, Bahrain, Chile, Colombia, Costa Rica, Dominican Republic, El Salvador, Guatemala, Honduras, Korea (Republic of), Mexico, Morocco, Nicaragua, Panama, Peru, or Singapore);

(3) A least developed country (Afghanistan, Angola, Bangladesh, Benin, Bhutan, Burkina Faso, Burundi, Cambodia, Central African Republic, Chad, Comoros, Democratic Republic of Congo, Djibouti, Equatorial Guinea, Eritrea, Ethiopia, Gambia, Guinea, Guinea-Bissau, Haiti, Kiribati, Laos, Lesotho, Liberia, Madagascar, Malawi, Mali, Mauritania, Mozambique, Nepal, Niger, Rwanda, Samoa, Sao Tome and Principe, Senegal, Sierra Leone, Solomon Islands, Somalia, South Sudan, Tanzania, Timor-Leste, Togo, Tuvalu, Uganda, Vanuatu, Yemen, or Zambia); or

(4) A Caribbean Basin country (Antigua and Barbuda, Aruba, Bahamas, Barbados, Belize,

Bonaire, British Virgin Islands, Curacao, Dominica, Grenada, Guyana, Haiti, Jamaica, Montserrat, Saba, St. Kitts and Nevis, St. Lucia, St. Vincent and the Grenadines, Sint Eustatius, Sint Maarten, or Trinidad and Tobago).

"Designated country end product" means a WTO GPA country end product, a Free Trade Agreement country end product, a least developed country end product, or a Caribbean Basin country end product.

"End product" means those articles, materials, and supplies to be acquired under this contract for public use.

"Free Trade Agreement country end product" means an article that-

(1) Is wholly the growth, product, or manufacture of a Free Trade Agreement country; or

(2) In the case of an article that consists in whole or in part of materials from another country, has been substantially transformed in a Free Trade Agreement country into a new and different article of commerce with a name, character, or use distinct from that of the article or articles from which it was transformed. The term refers to a product offered for purchase under a supply contract, but for purposes of calculating the value of the end product includes services (except transportation services) incidental to its supply, provided that the value of those incidental services does not exceed the value of the product itself.

"Least developed country end product" means an article that-

(1) Is wholly the growth, product, or manufacture of a least developed country; or

(2) In the case of an article that consists in whole or in part of materials from another country, has been substantially transformed in a least developed country into a new and different article of commerce with a name, character, or use distinct from that of the article or articles from which it was transformed. The term refers to a product offered for purchase under a supply contract, but for purposes of calculating the value of the end product includes services (except transportation services) incidental to its supply, provided that the value of those incidental services does not exceed the value of the product itself.

"Nondesignated country end product" means any end product that is not a U.S.-made end product or a designated country end product.

"Qualifying country" means a country with a reciprocal defense procurement memorandum of

understanding or international agreement with the United States in which both countries agree to remove barriers to purchases of supplies produced in the other country or services performed by sources of the other country, and the memorandum or agreement complies, where applicable, with the requirements of section 36 of the Arms Export Control Act (22 U.S.C. 2776) and with 10 U.S.C. 2457. Accordingly, the following are qualifying countries:

Australia

Austria

Belgium

Canada

Czech Republic

Denmark

Egypt

Estonia

Finland

France

Germany

Greece

Israel

Italy

Japan

Latvia

Lithuania

Luxembourg

Netherlands

Norway

Poland

Portugal

Slovenia

Spain

Sweden

Switzerland

Turkey

United Kingdom of Great Britain and Northern Ireland.

"Qualifying country end product" means-

(1) An unmanufactured end product mined or produced in a qualifying country; or

(2) An end product manufactured in a qualifying country if-

(i) The cost of the following types of components exceeds 60 percent of the cost of all its components, except that the percentage will be 65 percent for items delivered in calendar years 2024 through 2028 and 75 percent for items delivered starting in calendar year 2029, unless an alternate percentage is established for a contract:

(A) Components mined, produced, or manufactured in a qualifying country.

(B) Components mined, produced, or manufactured in the United States .

(C) Components of foreign origin of a class or kind for which the Government has determined

that sufficient and reasonably available commercial quantities of a satisfactory quality are not mined, produced, or manufactured in the United States; or

(ii) The end product is a COTS item.

" United States " means the 50 States, the District of Columbia , and outlying areas.

"U.S.-made end product" means an article that-

(1) Is mined, produced, or manufactured in the United States ; or

(2) Is substantially transformed in the United States into a new and different article of commerce with a name, character, or use distinct from that of the article or articles from which it was transformed.

"WTO GPA country end product" means an article that-

(1) Is wholly the growth, product, or manufacture of a WTO GPA country; or

(2) In the case of an article that consists in whole or in part of materials from another country, has been substantially transformed in a WTO GPA country into a new and different article of commerce with a name, character, or use distinct from that of the article or articles from which it was transformed. The term refers to a product offered for purchase under a supply contract, but for purposes of calculating the value of the end product includes services (except transportation services) incidental to its supply, provided that the value of those incidental services does not exceed the value of the product itself.

(b) Unless otherwise specified, this clause applies to all items in the Schedule.

(c) The Contractor shall deliver under this contract only U.S.-made, qualifying country, or designated country end products unless-

(1) In its offer, the Contractor specified delivery of other nondesignated country end products in the Trade Agreements Certificate provision of the solicitation; and

(2)(i) Offers of U.S.-made, qualifying country, or designated country end products from responsive, responsible offerors are either not received or are insufficient to fill the Government's requirements; or

(ii) A national interest waiver has been granted.

(d) The contract price does not include duty for end products or components for which the Contractor will claim duty-free entry.

(e) The HTSUS is available at <http://www.usitc.gov/tata/hts/bychapter/index.htm>. The following sections of the HTSUS provide information regarding duty-free status of articles specified in the definition of "Caribbean Basic country end product" within paragraph (a) of his clause:

(1) General Note 3(c), Products Eligible for Special Tariff Treatment.

(2) General Note 17, Products of Countries Designated as Beneficiary Countries Under the United States - Caribbean Basin Trade Partnership Act of 2000.

(3) Section XXII, Chapter 98, Subchapter II, Articles Exported and Returned, Advanced or Improved Abroad, U.S. Note 7(b).

(4) Section XXII, Chapter 98, Subchapter XX, Goods Eligible for Special Tariff Benefits Under the United States-Caribbean Basin Trade Partnership Act.

(End of clause)

**Solicitation Provisions****FAR Provisions Incorporated by Reference**

| <b>Number</b> | <b>Title</b>                                                     | <b>Effective Date</b> | <b>Alternate Deviation</b> | <b>Variation Effective Date</b> |
|---------------|------------------------------------------------------------------|-----------------------|----------------------------|---------------------------------|
| 52.204-7      | System for Award Management-Registration. (Deviation 2026-O0038) | 2026-02               |                            |                                 |

**DFARS Provisions Incorporated by Reference**

| <b>Number</b> | <b>Title</b>                                                         | <b>Effective Date</b> | <b>Alternate Deviation</b> | <b>Variation Effective Date</b> |
|---------------|----------------------------------------------------------------------|-----------------------|----------------------------|---------------------------------|
| 252.203-7005  | Representation Relating to Compensation of Former DoD Officials.     | 2022-09               |                            |                                 |
| 252.204-7024  | Notice on the Use of the Supplier Performance Risk System.           | 2023-03               |                            |                                 |
| 252.225-7055  | Representation Regarding Business Operations with the Maduro Regime. | 2022-05               |                            |                                 |

**FAR Provisions Incorporated by Full Text**

| <b>Number</b> | <b>Title</b>              | <b>Effective Date</b> | <b>Alternate Deviation</b> | <b>Variation Effective Date</b> |
|---------------|---------------------------|-----------------------|----------------------------|---------------------------------|
| 52.212-1      | Instructions to Offerors- | 2026-02               |                            |                                 |

Commercial Products and  
Commercial Services. (Deviation  
2026-O0038)

Instructions to Offerors-Commercial Products and Commercial Services (Feb 2026) (Deviation  
2026-O0038)

(a) Submission of offers. Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified in this solicitation. As a minimum, offers shall include-

- (1) The solicitation number;
- (2) The name, address, telephone number of the Offeror;
- (3) The Offeror's Unique Entity Identifier (UEI) and, if applicable, Electronic Funds Transfer (EFT) indicator;
- (4) Information necessary to evaluate the factors contained in the provision at 52.212-2 or as described in the solicitation;
- (5) Responses to provisions that require Offeror completion of information, representations, and certifications (other than those collected via the System for Award Management (SAM)); and
- (6) A statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation and any solicitation amendments.

(b) Period for acceptance of offers. The Offeror agrees to hold the prices in its offer firm for 60 calendar days from the date specified for receipt of offers, unless another time period is specified in an addendum to the solicitation.

(c) Late submissions, modifications, revisions, and withdrawals of offers.

(1) Offerors are responsible for submitting offers and any modifications or revisions to the Government office designated in the solicitation by the time specified in the solicitation.

(2) Any offer, modification, or revision received after the time specified for receipt of offers is



"late" and will not be considered unless it is received before award is made and the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition. However, a late modification of an otherwise successful offer that makes its terms more favorable to the Government will be considered at any time it is received and may be accepted.

(3) If an emergency or unanticipated event interrupts normal Government processes so that offers cannot be received at the Government office designated for receipt of offers by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation or other notice of an extension of the closing date, the time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(4) Offerors may withdraw their offers by written notice to the Government received at any time before award.

(d) Contract award (not applicable to Invitation for Bids). The Government intends to evaluate offers and award a contract without discussions with Offerors. Therefore, the Offeror's initial offer should contain the Offeror's best terms. However, the Government reserves the right to conduct discussions, if necessary. The Government may reject any or all offers if such action is in the public interest, accept other than the lowest offer, and waive informalities and minor irregularities in offers received.

(e) Debriefings. If a postaward debriefing is given to requesting Offerors, the Government will disclose the following information, if applicable:

(1) The agency's evaluation of the significant weak or deficient factors in the debriefed Offeror's offer.

(2) The overall evaluated cost or price and technical rating of the successful Offeror and the debriefed Offeror and past performance information on the debriefed Offeror.

(3) The overall ranking of all Offerors when any ranking was developed by the agency during source selection.

(4) A summary of the rationale for award.

(5) For acquisitions of commercial products, the make and model of the product to be delivered by the successful Offeror.

(6) Reasonable responses to relevant questions posed by the debriefed Offeror as to whether the agency followed source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities.

(End of provision)

#### DFARS Provisions Incorporated by Full Text

| Number       | Title                                                                                                      | Effective Date | Alternate Deviation | Variation Effective Date |
|--------------|------------------------------------------------------------------------------------------------------------|----------------|---------------------|--------------------------|
| 252.204-7017 | Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation. | 2021-05        |                     |                          |

#### PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) Definitions. "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) Prohibition. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a

contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) Representation. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) Disclosures. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense

telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

252.225-7000 Buy American--Balance of 2024-02  
Payments Program Certificate.

#### BUY AMERICAN-BALANCE OF PAYMENTS PROGRAM CERTIFICATE-BASIC (FEB 2024)

(a) Definitions. "Commercially available off-the-shelf (COTS) item," "component," "critical component," "critical item," "domestic end product," "foreign end product," "qualifying country," "qualifying country end product," and "United States," as used in this provision, have the meanings given in the 252.225-7001, Buy American and Balance of Payments Program-Basic clause of this solicitation.

(b) Evaluation. The Government-

(1) Will evaluate offers in accordance with the policies and procedures of Part 225 of the Defense Federal Acquisition Regulation Supplement; and

(2) Will evaluate offers of qualifying country end products without regard to the restrictions of the Buy American statute or the Balance of Payments Program.

(c) Certifications and identification of country of origin.

(1) For all line items subject to the Buy American and Balance of Payments Program-Basic clause of this solicitation, the Offeror certifies that-

(i) Each end product, except those listed in paragraphs (c)(2) or (3) of this provision, is a domestic end product and that each domestic end product listed in paragraph (c)(4) of this provision contains a critical component or a critical item; and

(ii) For end products other than COTS items, components of unknown origin are considered to have been mined, produced, or manufactured outside the United States or a qualifying

country. For those end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

(2) The Offeror certifies that the following end products are qualifying country end products:

| Line Item Number | Country of Origin |
|------------------|-------------------|
| _____            | _____             |
| _____            | _____             |
| _____            | _____             |

(3) The following end products are other foreign end products, including end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

| Line Item Number | Country of Origin (If known) | Exceeds 55% Domestic Content (yes/no) |
|------------------|------------------------------|---------------------------------------|
| _____            | _____                        | _____                                 |
| _____            | _____                        | _____                                 |
| _____            | _____                        | _____                                 |

(4) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component or a critical item (see Federal Acquisition Regulation 25.105).

Domestic end products containing a critical component or a critical item:

Line Item Number \_\_\_\_\_

[List as necessary]

(End of provision)

## TRADE AGREEMENTS CERTIFICATE-BASIC (NOV 2014)

(a) Definitions. "Designated country end product," "nondesignated country end product," "qualifying country end product," and "U.S.-made end product" as used in this provision have the meanings given in the Trade Agreements-Basic clause of this solicitation.

(b) Evaluation. The Government-

(1) Will evaluate offers in accordance with the policies and procedures of Part 225 of the Defense Federal Acquisition Regulation Supplement; and

(2) Will consider only offers of end products that are U.S.-made, qualifying country, or designated country end products unless-

(i) There are no offers of such end products;

(ii) The offers of such end products are insufficient to fulfill the Government's requirements; or

(iii) A national interest waiver has been granted.

(c) Certification and identification of country of origin.

(1) For all line items subject to the Trade Agreements-Basic clause of this solicitation, the offeror certifies that each end product to be delivered under this contract, except those listed in paragraph (c)(2) of this provision, is a U.S.-made, qualifying country, or designated country end product.

(2) The following supplies are other nondesignated country end products:

(Line Item Number)

(Country of Origin)

\_\_\_\_\_

\_\_\_\_\_

\_\_\_\_\_

\_\_\_\_\_

\_\_\_\_\_

\_\_\_\_\_

(End of provision)

## Evaluation - Commercial Products and Commercial Services

### FAR Provisions Incorporated by Full Text

| Number   | Title                                                                             | Effective Date | Alternate Deviation | Variation Effective Date |
|----------|-----------------------------------------------------------------------------------|----------------|---------------------|--------------------------|
| 52.212-2 | Evaluation-Commercial Products and Commercial Services.<br>(Deviation 2026-O0038) | 2026-02        |                     |                          |

Evaluation-Commercial Products and Commercial Services (Feb 2026) (Deviation 2026-O0038)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

[Insert evaluation factors in the relative order of importance. For requests for proposals, state: Evaluation factors other than price when combined are [significantly more important than price /approximately equal to price/significantly less important] than price. For invitations for bids, list only price and price-related factors.]

\_\_\_\_\_

\_\_\_\_\_

\_\_\_\_\_

\_\_\_\_\_

(b) Options (if applicable). The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) Notice of award. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

## Addendum to Solicitation Provisions

### FAR Provisions Incorporated by Reference

| Number    | Title                                                                                                                           | Effective Date | Alternate Deviation | Variation Effective Date |
|-----------|---------------------------------------------------------------------------------------------------------------------------------|----------------|---------------------|--------------------------|
| 52.203-18 | Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. | 2017-01        |                     |                          |
| 52.240-90 | Security Prohibitions and Exclusions Representations and Certifications. (Deviation 2026-00038)                                 | 2026-02        |                     |                          |

### DFARS Provisions Incorporated by Reference

| Number       | Title                        | Effective Date | Alternate Deviation | Variation Effective Date |
|--------------|------------------------------|----------------|---------------------|--------------------------|
| 252.206-7000 | Domestic Source Restriction. | 2023-08        |                     |                          |



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## Korea-Specific Clauses

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In accordance with Defense Federal Acquisition Regulations Supplement, Policies, Guidance, and Instructions (DFARS PGI) PGI 225.74—DEFENSE CONTRACTORS OUTSIDE THE UNITED STATES and PGI 225.7401 CONTRACTS REQUIRING PERFORMANCE OR DELIVERY IN A FOREIGN COUNTRY, for work performed in Japan or Korea, U.S.-Japan or U.S.-Korea bilateral agreements govern the status of contractors and employees, criminal jurisdiction, and taxation. U.S. Forces Japan (USFJ) and U.S. Forces Korea (USFK) are sub-unified commands of Pacific Command (PACOM). The PACOM Staff Judge Advocate contact information is available at [http://www.pacom.mil/web/Site\\_Pages/Staff%20Directory/J0/J0.shtml](http://www.pacom.mil/web/Site_Pages/Staff%20Directory/J0/J0.shtml) or by clicking on Staff Directory/Special Staff on the PACOM website. Links to USFJ and USFK websites can be found at the PACOM website at <http://www.pacom.mil> by clicking on “Regional Resources - Links”.

For work performed in Korea—

- (A) U.S.-Korea bilateral agreements govern the status of contractors and employees, criminal jurisdiction, and taxation;
- (B) USFK and component policy, as well as U.S.-Korea bilateral agreements, govern logistics support and base privileges of contractor employees;
- (C) The Commander, USFK, is primarily responsible for interpreting the SOFA and local laws applicable to U.S. Forces in Korea and for requirements in support of USFK; and
- (D) To ensure that the solicitation and resultant contract reflect an accurate description of available logistics support and application of the U.S.-Korea SOFA, review the SOFA information found at the USFK website at:  
<http://www.usfk.mil/usfk/> under “Publications”, or at <http://www.usfk.mil/usfk/sofadocuments.aspx> . Contact information for the Commander is also available at <http://www.usfk.mil/usfk/leadership.aspx>.
- (E) Additional applicable directives and regulations are available at <http://www.usfk.mil/usfk/> , click on the drop down menu for “Publications”.
- (F) The Defense Base Act does not apply because Korea is listed on the Department of Defense (DoD) Geographic Waiver Listing (as of June 2013).

### CLAUSES INCORPORATED BY FULL TEXT

#### SOFA Contract Clause

#### INVITED CONTRACTOR OR TECHNICAL REPRESENTATIVE STATUS UNDER U.S. – REPUBLIC OF KOREA (ROK) STATUS OF FORCES AGREEMENT (SOFA)

Invited Contractor (IC) and Technical Representative (TR) status shall be governed by the U.S.-ROK Status of Forces Agreement (SOFA) as implemented by United States Forces Korea (USFK) USFKI 4901.01, which can be found under the “publications” tab on the U.S. Forces Korea homepage at <http://www.usfk.mil>.

(a) Definitions. As used in this clause—

“U.S. – ROK Status of Forces Agreement” (SOFA) means the Mutual Defense Treaty between the Republic of Korea and the U.S. of America, Regarding Facilities and Areas and the Status of U.S. Armed Forces in the Republic of Korea, as amended

“Combatant Commander” means the commander of a unified or specified combatant

#### **Attachment #4 Supplemental**

command established in accordance with 10 U.S.C. 161. In Korea, the Combatant Commander is the Commander, United States Pacific Command.

“United States Forces Korea” (USFK) means the subordinate unified command through which U.S. forces would be sent to the Combined Forces Command fighting components.

“Commander, United States Forces Korea” (COMUSK) means the commander of all U.S. forces present in Korea. In the Republic of Korea, COMUSK also serves as Commander, Combined Forces Command (CDR CFC) and Commander, United Nations Command (CDR UNC).

“USFK, Office of Acquisition Management” (USFK/FKAQ) means the principal staff office to USFK for all acquisition matters and administrator of the U.S.-ROK SOFA as applied to US and Third-Country contractors under the (IC) and (TR) Program (USFKI 4901.01).

“Responsible Officer (RO)” means a DoD employee (such as a military E5 and above or civilian GS-7/KGS-07 and above), appointed by the USFK Sponsoring Agency (SA), who is directly responsible for determining and administering appropriate logistics support for IC/TRs during contract performance in the ROK.

(b) IC or TR status under the SOFA is subject to the written approval from the Office of Acquisition Management, USFK (FKAQ), Unit #15289, APO AP 96271-5289.

(c) The contracting officer will coordinate with HQ USFK/FKAQ, IAW FAR 25.8, and USFKI 4901.01. FKAQ will determine the appropriate contractor status under the SOFA and notify the contracting officer of that determination.

(d) Subject to the above determination, the contractor, including its employees and lawful dependents, may be accorded such privileges and exemptions under conditions and limitations as specified in the SOFA and USFKI 4901.01. These privileges and exemptions may be furnished during the performance period of the contract, subject to their availability and continued SOFA status. Logistics support privileges are provided on an as-available basis to properly authorized individuals. Some logistics support may be issued as Government Furnished Property (GFP) or transferred on a reimbursable basis.

(e) The contractor warrants and shall ensure that collectively, and individually, its officials and employees performing under this contract will not perform any contract, service, or other business activity in the ROK, except under U.S. Government contracts IAW the SOFA.

(f) The contractor’s direct employment of any Korean-National labor for performance of this contract shall be governed by ROK labor law and USFK instruction(s) pertaining to the direct employment and personnel administration of Korean National personnel.

(g) The authorities of the ROK have the right to exercise jurisdiction over invited contractors and technical representatives, including contractor officials, employees and their dependents, for offenses committed in the ROK and punishable by the laws of the ROK. In recognition of the role of such persons in the defense of the ROK, they will be subject to the provisions of Article XXII, SOFA, related Agreed Minutes and Understandings. In those cases, in which the authorities of the ROK decide not to exercise jurisdiction, they shall notify the U.S. military authorities as soon as possible. Upon such notification, the military authorities will have the right to exercise jurisdiction as is conferred by the laws of the U.S.

(h) Invited contractors and technical representatives agree to cooperate fully with the

#### **Attachment #4 Supplemental**

USFK SA and RO on all matters pertaining to logistics support and theater training requirements. Contractors will provide the assigned SA prompt and accurate reports of changes in employee status as required by USFKI 4901.01.

(i) Theater Specific Training. Training Requirements for IC/TR personnel shall be conducted in accordance with USFK Reg 350-2 Theater Specific Required Training for all Arriving Personnel and Units Assigned to, Rotating to, or in Temporary Duty Status to USFK. IC/TR personnel shall comply with requirements of USFK Reg 350-2.

(j) Except for contractor air crews flying Air Mobility Command missions, all U.S. contractors performing work on USAF classified contracts will report to the nearest Security Forces Information Security Section for the geographical area where the contract is to be performed to receive information concerning local security requirements.

(k) IC/TR status may be withdrawn by USFK/FKAQ upon:

(1) Completion or termination of the contract.

(2) Determination that the contractor or its employees are engaged in business activities in the ROK other than those pertaining to U.S. armed forces.

(3) Determination that the contractor or its employees are engaged in practices in contravention to Korean law or USFK instructions.

(l) It is agreed that the withdrawal of IC or TR status, or the withdrawal of, or failure to provide any of the privileges associated therewith by the U.S. and USFK, shall not constitute grounds for excusable delay by the contractor in the performance of the contract and will not justify or excuse the contractor defaulting in the performance of this contract. Furthermore, it is agreed that withdrawal of SOFA status for reasons outlined in USFKI 4901.01, Enclosure A, paragraph 4 shall not serve as a basis for the contractor filing any claims against the U.S. or USFK. Under no circumstance shall the withdrawal of SOFA Status or privileges be considered or construed as a breach of contract by the U.S. Government.

(m) Support.

(1) Unless the terms and conditions of this contract place the responsibility with another party, the COMUSK will develop a security plan to provide protection, through military means, of Contractor personnel engaged in the theater of operations when sufficient or legitimate civilian authority does not exist.

(2)(i) All Contractor personnel engaged in the theater of operations are authorized resuscitative care, stabilization, hospitalization at level III military treatment facilities, and assistance with patient movement in emergencies where loss of life, limb, or eyesight could occur. Hospitalization will be limited to stabilization and short-term medical treatment with an emphasis on return to duty or placement in the patient movement system.

(ii) When the Government provides medical or emergency dental treatment or transportation of Contractor personnel to a selected civilian facility, the Contractor shall ensure that the Government is reimbursed for any costs associated with such treatment or transportation.

(iii) Medical or dental care beyond this standard is not authorized unless specified elsewhere in this contract.

(3) Unless specified elsewhere in this contract, the Contractor is responsible for all other support required for its personnel engaged in the theater of operations under this contract.

(n) Compliance with laws and directives. The Contractor shall comply with, and shall ensure that its personnel supporting U.S Armed Forces in the Republic of Korea as

#### **Attachment #4 Supplemental**

specified in paragraph (b)(1) of this clause are familiar with and comply with, all applicable –

- (1) United States, host country, and third-country national laws;
  - (2) Treaties and international agreements;
  - (3) United States regulations, directives, instructions, policies, and procedures;
- and
- (4) Orders, directives, and instructions issued by the COMUSK relating to force protection, security, health, safety, or relations and interaction with local nationals. Included in this list are force protection advisories, health advisories, area (i.e., “offlimits”), prostitution and human trafficking and curfew restrictions.

(o) Vehicle or equipment licenses. IAW USFK Regulation 190-1, Contractor personnel shall possess the required licenses to operate all vehicles or equipment necessary to perform the contract in the theater of operations. All contractor employees/dependents must have either a Korean driver’s license or a valid international driver’s license to legally drive on Korean roads, and must have a USFK driver’s license to legally drive on USFK installations. Contractor employees/dependents will first obtain a Korean driver’s license or a valid international driver’s license then obtain a USFK driver’s license.

(p) Evacuation.

(1) If the COMUSK orders a non-mandatory or mandatory evacuation of some or all personnel, the Government will provide assistance, to the extent available, to United States and third-country national contractor personnel.

(2) Non-combatant Evacuation Operations (NEO).

(i) The contractor shall designate a representative to provide contractor personnel and dependents information to the servicing NEO warden as required by direction of the Responsible Officer.

(ii) If contract period of performance in the Republic of Korea is greater than six months, non-emergency essential contractor personnel and all IC/TR dependents shall participate in at least one USFK sponsored NEO exercise per year.

(q) Next of kin notification and personnel recovery.

(1) The Contractor shall be responsible for notification of the employee designated next of kin in the event an employee dies, requires evacuation due to an injury, or is missing, captured, or abducted.

(2) In the case of missing, captured, or abducted contractor personnel, the Government will assist in personnel recovery actions in accordance with DoD Directive 2310.2, Personnel Recovery.

(3) IC/TR personnel shall accomplish Personnel Recovery/Survival, Evasion, Resistance and Escape (PR/SERE) training in accordance with USFK Reg 525-40, Personnel Recovery Procedures and USFK Reg 350-2 Theater Specific Required Training for all Arriving Personnel and Units Assigned to, Rotating to, or in Temporary Duty Status to USFK.

(r) Mortuary affairs. Mortuary affairs for contractor personnel who die while providing support in the theater of operations to U.S. Armed Forces will be handled in accordance with DoD Directive 1300.22, Mortuary Affairs Policy and Army Regulation 638-2, Care

## **Attachment #4 Supplemental**

and Disposition of Remains and Disposition of Personal Effects.

(s) USFK Responsible Officer (RO). The USFK appointed RO will ensure all IC/TR personnel complete all applicable training as outlined in this clause.

### **Korean Labor Law**

Contractors and subcontractors at all tiers, shall honor employees' rights in full compliance with Korean Labor Law, including the rights of succession of employment. Failure to comply may be deemed breach or default of the contract and evidence of nonresponsibility. Such violation of Korean Labor Law may be evidenced by a Republic of Korea Ministry of Labor determination, a court decision, or a Labor Relations Commission adjudication. If a contractor is found to be in serious violation and fails to take adequate corrective action promptly, USFK may consider this grounds for determining the contractor to be non-responsible for future Government contracts.

### **Work Days, Holidays, And Work Hours U.S. and Republic Of Korea (ROK)**

(A) U.S. Government legal holidays are as follows:

1 January (New Year's Day)  
3<sup>rd</sup> Monday, January (Dr. King's Birthday)  
3<sup>rd</sup> Monday, February (President's Day)  
Last Monday, May (Memorial Day)  
19 June (Juneteenth Day)  
4 July (Independence Day)  
1<sup>st</sup> Monday, September (Labor Day)  
2<sup>nd</sup> Monday, October (Columbus Day)  
11 November (Veterans' Day)  
4<sup>th</sup> Thursday, November (Thanksgiving Day)  
25<sup>th</sup> December (Christmas Day)

(B) ROK legal holidays are as follows:

1 and 2 January (New Year)  
Lunar New Year (31 December, 1 and 2 January on the Lunar Calendar)  
1 March (Independence Movement Day)  
1 May (Labor Day)  
5 May (Children's Day)  
Buddha's Birthday (8 April on the Lunar calendar)  
6 June (Memorial Day)  
17 July (Constitution Day)  
15 August (Liberation Day)  
Chu-Suk (14, 15 and 16 August on the Lunar Calendar)  
3 October (National Foundation Day)  
25 December (Christmas Day)

(C) FOR AIR FORCE PROJECTS ONLY work hours shall be from 08:00 hours through 17:00 hours, Monday through Friday.

(D) FOR ARMY AND OTHER PROJECTS work hours shall be from 08:00 hours through 17:00 hours, Monday through Friday.

(E) In addition to the holidays listed in 5152.222-4007 for Air Force projects, contractor performance shall not be required on any other day designated by Federal Statute as a U.S. Government legal holiday.

(End of Section)

## Supplementary Conditions

### HOST COUNTRY RULES AND CUSTOMS

#### **COMPLIANCE WITH HOST COUNTRY RULES AND CUSTOMS**

a. The laws of Host Country may prohibit access to certain areas of the country which are under military control. The Contractor shall be responsible for advising the Contracting Officer's Representative of the names of personnel, type, and amounts of equipment, dates and length of time required at the site, and purpose of entering the host country, so that proper clearances may be obtained from the Host Government. It is understood that areas to which rights of entry are provided by the Host Government are to be used only for work carried out under the contract and no destruction or damages shall be caused, except through normal usage, without concurrence of the Host Government. Contractors may have to submit relevant personnel information up to 30 days in advance prior to being granted access by the Host Government to certain locations.

b. The following items are the sole responsibility of the Contractor to investigate, estimate as to cost, and assume the risk, as normally encountered by Contractors. The Contractor shall be responsible for determining the effect of the following on his own cost of performance of the contract and for including sufficient amount in the contract price:

- Official language and type of accounts required to satisfy the officials of the Local Government.
- Entry and exit visas, residence permits, and residence laws applicable to aliens. This includes any special requirements of the Host Government, including those required by local Labor Offices, which the Contractor may have to fulfill before an application for a regular block of visas will be accepted.
- Passports, health and immunization certificates, and quarantine clearance.
- Compliance with local labor and insurance laws, including payment of employer's share of contribution, collecting balance from employee and paying into insurance funds.
- Strikes, demonstrations and work stoppage.
- Collection through withholding and payment to local Government, of any Host Country income tax on employees subject to tax.
- Arranging to perform work in the Host Country, to import personnel, to employ non-indigenous labor, to receive payments and to remove such funds from the country.
- Operating under local laws, practices, customs and controls, and with local unions, in connection with hiring and firing, mandatory wage scales, vacation pay, severance pay, overtime, holiday pay, 7th day of rest, legal notice or pay in lieu thereof for dismissal of employees, slowdown and curtailed schedules during religious holidays, and ratio of local labor employed in comparison to others.
- Possibility of claims in local bureaus, litigation in local courts, or attachment of local bank accounts.
- Compliance with workmen's compensation laws and contributions into funds. Provisions of necessary medical service for Contractor employees.
- Special license required by the local Government. Including any license or permit required for setting up and operating any manufacturing plant in the Host Country, e.g. concrete batching, precast concrete, concrete blocks, etc.
- Sales within the host country of Contractor-owned materials, and equipment.
- Special licenses for physicians, mechanics, tradesmen, drivers, etc.
- Identification and/or registration with local police of imported personnel.
- Compliance with base access requirements and obtaining base passes for permanent staff, day laborers, motor vehicles, etc.
- Compliance with all customs and import rules, regulations and restrictions, including, but not limited to, local purchase requirements.

## **CONTRACTOR PERFORMANCE EVALUATION**

PERFORMANCE EVALUATION  
(SERVICES AND SUPPLY)

1. Contract Number      b. Del Order

2. CEC/DUNS Number      B. SIC Code

---

3. TYPE OF EVALUATION ( ) INTERIM ( X ) FINAL ( ) AMENDED 4. Terminated For Default ( )  
Convenience ( )

---

5. Contractor (Name, address and ZIP code)

6A. Procurement Method  
( ) Sealed Bid ( X ) Negotiated

6B. Type of Contract  
( X ) FFP ( ) Cost Reimbursement ( ) Other

---

7. Description of Requirements and Location of Work

---

8. Type of Subcontracting

---

|                |                    |                    |                       |                    |
|----------------|--------------------|--------------------|-----------------------|--------------------|
| 9. Fiscal Data | A. Amount of Basic | B. Total Amount of | C. Liquidated Damages | D. Net Amount Paid |
|                |                    | \$                 | \$                    | \$                 |

---

|                 |                  |                               |                              |                        |
|-----------------|------------------|-------------------------------|------------------------------|------------------------|
| 10. Significant | A. Date of Award | B. Original Contract /DO Date | C. Revised Contract /DO Date | D. Date Work Completed |
|-----------------|------------------|-------------------------------|------------------------------|------------------------|

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### **PART II – PERFORMANCE EVALUATION OF CONTRACT (Check appropriate box)**

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11. Overall Rating

( ) Outstanding ( ) Above Average ( ) Satisfactory ( ) Marginal ( ) Unsatisfactory

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#### **12. EVALUATED BY**

A. Organization

B. Phone Numbers  
Comm  
Autovon

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#### **13. EVALUATION REVIEWED BY**

A. Organization

B. Phone Numbers  
Comm  
  
Autovon

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C. Name and Title

D. Signature

E. Date

---

14. A. Federal Supply Class:

B. Business Status:

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## **CONTRACTOR PERFORMANCE EVALUATION**

N/A= Not Applicable O= Outstanding A= Above Average S= Satisfactory M= Marginal U= Unsatisfactory

### **PART III – EVALUATION OF PERFORMANCE ELEMENTS**

| <b>15. Quality Control</b>                                                                                 | N/A | O | A | S | M | U | <b>16. Effectiveness of Management</b>                                                      | N/A | O | A | S | M | U |
|------------------------------------------------------------------------------------------------------------|-----|---|---|---|---|---|---------------------------------------------------------------------------------------------|-----|---|---|---|---|---|
| a. Quality of Product                                                                                      |     |   |   |   |   |   | a. Cooperation and responsiveness                                                           |     |   |   |   |   |   |
| b. Quality of service                                                                                      |     |   |   |   |   |   | b. Management of resources/personnel                                                        |     |   |   |   |   |   |
| c. Implementation of the CQC plan                                                                          |     |   |   |   |   |   | c. Forecast and control of costs                                                            |     |   |   |   |   |   |
| d. Met Contract requirement                                                                                |     |   |   |   |   |   | d. Adequacy of site clean-up                                                                |     |   |   |   |   |   |
| e. Storage of materials                                                                                    |     |   |   |   |   |   | e. Effectiveness of jobsite supervision                                                     |     |   |   |   |   |   |
| f. Adequacy of materials                                                                                   |     |   |   |   |   |   | f. Compliance with laws and regulations                                                     |     |   |   |   |   |   |
| g. Adequacy of submittals                                                                                  |     |   |   |   |   |   | g. Professional conduct                                                                     |     |   |   |   |   |   |
| h. Adequacy of as-builts                                                                                   |     |   |   |   |   |   | h. Review/resolution of subcontracting plan                                                 |     |   |   |   |   |   |
| j. Use of specified materials                                                                              |     |   |   |   |   |   | i. Accomplishments under                                                                    |     |   |   |   |   |   |
| k. Identification/correction of deficient work in a timely manner                                          |     |   |   |   |   |   | <b>18. Compliance with Labor Standards</b>                                                  |     |   |   |   |   |   |
| <b>17. Timely Performance</b>                                                                              |     |   |   |   |   |   | a. Correction of noted deficiencies                                                         |     |   |   |   |   |   |
| a. Adherence to delivery schedule                                                                          |     |   |   |   |   |   | b. Payrolls properly completed and submitted                                                |     |   |   |   |   |   |
| b. Resolution of delays                                                                                    |     |   |   |   |   |   | c. Compliance with labor laws and regulations: Davis Bacon/Service Act and EEO Requirements |     |   |   |   |   |   |
| c. Submission of required documentation                                                                    |     |   |   |   |   |   | <b>19. Compliance with Safety Standards</b>                                                 |     |   |   |   |   |   |
| d. Correction of minor deficiencies Warranty response                                                      |     |   |   |   |   |   | a. Adequacy of safety plan                                                                  |     |   |   |   |   |   |
|                                                                                                            |     |   |   |   |   |   | b. Implementation of safety plan                                                            |     |   |   |   |   |   |
|                                                                                                            |     |   |   |   |   |   | c. Correction of noted deficiencies                                                         |     |   |   |   |   |   |
|                                                                                                            |     |   |   |   |   |   |                                                                                             |     |   |   |   |   |   |
| <b>20. Remarks: <u>Explanation of evaluation is required.</u></b><br>Continue on separate sheet if needed. |     |   |   |   |   |   |                                                                                             |     |   |   |   |   |   |



U.S. Army Corps of Engineers (USACE)  
**ACCIDENT PREVENTION PLAN (APP) WORKSHEET**

For use of this form, see EM 385-1-1; the proponent agency is CESO.

This form serves as a guide. It does not replace or eliminate the need to comply with the requirements set forth in Engineering Manual 385-1-1, Safety and Occupational Health Requirements Manual. The references included in this form correspond to the applicable chapters of EM 385-1-1. No work will begin onsite until the accident prevention plan (APP) is developed according to the EM 385-1-1, reviewed to ensure minimum requirements are met, and approved by the appropriate personnel identified in "Part 1 -Signatures"

**PART 1 - SIGNATURES**

**Plan Preparer - For example: Qualified Person (QP), Competent Person (CP), or project Quality Control (QC).**

|                   |                  |
|-------------------|------------------|
| 1. Name:          | 2. Title:        |
| 3. Email Address: | 4. Phone Number: |
| 5. Signature      |                  |

**Plan Approver - Corporate Safety Official**

|                   |                  |
|-------------------|------------------|
| 1. Name:          | 2. Title:        |
| 3. Email Address: | 4. Phone Number: |
| 5. Signature      |                  |

**Plan Concurrence - For example: Industrial hygienist, Project Manager, Superintendent, Site Safety & Health Officer, Quality Control, etc.**

|                   |                  |
|-------------------|------------------|
| 1. Name:          | 2. Title:        |
| 3. Email Address: | 4. Phone Number: |
| 5. Signature:     |                  |

**PART 2: PROJECT INFORMATION**

|                                                               |
|---------------------------------------------------------------|
| 1. Project Name:                                              |
| 2. Project Address (attach map in Appendix 1):                |
| 3. Estimated Project Start Date:                              |
| 4. Estimated Project Completion Date:                         |
| 5. Project Description / Description of work to be performed: |

**PART 3: PRIME CONTRACTOR INFORMATION**

1. Prime Contractor Name:

2. Contract Number:

3. Project Manager Name:

4. Quality Control (QC) Manager Name:

5. Contractor Corporate Safety Official Name:

6. Primary Site Safety &amp; Health Officer (SSHO) Name:

7. Alternate Site Safety &amp; Health Officer (SSHO) Name(s):

**PART 4: SOH COMMITMENT AND POLICY**

1. Provide a statement of safety and health policy detailing commitment to providing a safe and healthful workplace for all employees on this project.

2. Provide a statement outlining the Contractor's safety program goals and objectives.

3. Identify policies and procedure regarding non-compliance with safety requirements.

4. Provide written procedures for holding managers and supervisors accountable for safety.

5. Prime contractor is responsible for the implementation and enforcement of the SOH program for contractor employees, subcontractors, suppliers, and visitors at the site of work?

☐ Yes☐ No

6. Prime contractor will require subcontractors, suppliers, and visitors to comply with the APP and EM 385-1-1?

☐ Yes☐ No

7. No work will be performed unless a designated SSHO is present on the site of work.

☐ Yes☐ No

8. A list of all known subcontractor(s) and supplier(s) are listed in Appendix 2.

☐ Yes☐ No

9. If all subcontractor(s) and supplier(s) are not known at the time of initial APP submittal, Appendix 2 will be updated and resubmitted to the KO/COR for acceptance prior to the start of any work activities.

☐ Yes☐ No

10. All subcontractors will have a copy of the APP, applicable AHAs and will be required to comply with them.

☐ Yes☐ No

11. Subcontractors and suppliers at the site of work will abide by the EM 385-1-1, this APP, and all AHAs.

☐ Yes☐ No

12. This APP and AHAs will be available to all workers at the site of work.

☐ Yes☐ No

**PART 5: TRAINING**

1. All employees will be trained according to applicable EM 385-1-1, federal, state, and local requirements prior to the commencement of work. ☐ Yes ☐ No
2. The following personnel are identified and designated as personnel responsible for SOH on this project. Add the following documentation to Appendix 3 of this worksheet: 1) SSHO designation letter (ENG Form 6282), 2) instructor signed OSHA 30-hour card (or course completion certificate if within 90 days of having completed the OSHA 30-hour training), and 3) proof of 24 hours of competency of SOH training within the last 3 years for the personnel identified below. (EM 385-1-1, Chapter 2, 2-3 Personnel Qualification/Training):  
(Check and list names of personnel being designated)
- ☐ Primary SSHO Name:
- ☐ Alternate SSHO Name(s):
3. QP(s) and CP(s) required by EM 385-1-1 (for example, excavation, confined space, scaffolding, fall protection, etc.) for this project will be included in Appendix 3. Include 1) List of names or designation letters and 2) proof of qualification/competency.

**PART 6: SOH INSPECTIONS**

1. All applicable inspections required by EM 385-1-1, contract, federal, state, and local requirements will be completed. ☐ Yes ☐ No
2. The following personnel are assigned to conduct inspections, the type of inspection and frequency for the worksite. At minimum the SSHO must conduct daily site inspections.
- | Who will conduct inspection? | Frequency? | What type of inspection? |
|------------------------------|------------|--------------------------|
|                              |            |                          |
3. Employees that conduct inspections will have technical proficiency needed to perform inspections. Proof of inspector's training/qualification is included in Appendix 3. ☐ Yes ☐ No
4. Deficiencies will be documented and tracked as required by this EM 385-1-1? ☐ Yes ☐ No
6. Will any external inspections be required (for example, USCG, OSHA, etc.)? ☐ Yes ☐ No  
If yes, describe:

**PART 7: ACCIDENT REPORTING AND INVESTIGATION**

1. Exposure data (man-hours worked) will be reported to KO/COR as required by the contract? ☐ Yes ☐ No
2. All accidents will be reported as soon as possible according to EM 385-1-1? ☐ Yes ☐ No
3. All accidents occurring incidentally to an operation, project, or facility for which the EM 385-1-1 is applicable will be thoroughly investigated and analyzed. Corrective actions to prevent reoccurrence will be implemented as soon as reasonably possible. The KO/COR will be notified when corrective actions are completed. ☐ Yes ☐ No
4. Accident notification will be provided to the KO/COR as stated below: ☐ Yes ☐ No
- | ACCIDENT TYPE                                                                 | KO/COR NOTIFICATION TIME                 |
|-------------------------------------------------------------------------------|------------------------------------------|
| Fatality, permanent and partial disability, or property damage over \$600,000 | Immediately, no later than (NLT) 8 hours |
| All other accidents and near misses                                           | Immediately, NLT 24 hours                |

**PART 8: SOH OVERSIGHT**

|                                                                                                                                                                                                                                                                                                                          |                              |                             |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------|-----------------------------|
| 1. A risk management process that meets or exceeds the requirement of the EM 385-1-1 will be implemented on this project site?                                                                                                                                                                                           | <input type="checkbox"/> Yes | <input type="checkbox"/> No |
| 2. Hazardous conditions and unsafe acts will be immediately corrected?                                                                                                                                                                                                                                                   | <input type="checkbox"/> Yes | <input type="checkbox"/> No |
| 3. APP and AHAs will be prepared by a QP or CP according to the EM 385-1-1 prior to the start of any work activities on the site of work (as much as the information can be known at that point in time).                                                                                                                | <input type="checkbox"/> Yes | <input type="checkbox"/> No |
| 4. The plans and AHAs will be updated throughout the life of the project to include changes in personnel, equipment, conditions, etc. Additional revisions must be incorporated as necessary to reflect changing site conditions, construction methods, personnel roles and responsibilities and construction schedules. | <input type="checkbox"/> Yes | <input type="checkbox"/> No |
| 5. No activity/work will be started at the site of work until the APP is reviewed and submitted to the KO/COR for acceptance, with the site-specific plans and procedures required by the EM 385-1-1 to complete the project?                                                                                            | <input type="checkbox"/> Yes | <input type="checkbox"/> No |
| 6. APP and AHAs will be provided to and reviewed by all workers involved in the activity prior to work?                                                                                                                                                                                                                  | <input type="checkbox"/> Yes | <input type="checkbox"/> No |
| 7. Workers will sign AHA(s) to concur with identified job steps and controls needed to mitigate hazards?                                                                                                                                                                                                                 | <input type="checkbox"/> Yes | <input type="checkbox"/> No |

**PART 9: SEVERE WEATHER PLAN**

|                                                                                                                            |                              |                             |
|----------------------------------------------------------------------------------------------------------------------------|------------------------------|-----------------------------|
| 1. The SSHO or designated onsite personnel is responsible for checking the weather conditions at a minimum of twice a day? | <input type="checkbox"/> Yes | <input type="checkbox"/> No |
| 2. What severe weather forecast will require the SSHO to monitor weather conditions continuously? Describe.                |                              |                             |
| 3. What are the training requirements for severe weather precautions and actions?                                          |                              |                             |
| 4. Identify area of retreat or other actions to be taken such as evacuation, shelter in place, etc.                        |                              |                             |
| 5. Identify procedures to stop outdoor activities if extreme weather conditions to include thunderstorms are in the area.  |                              |                             |

**PART 10: ACTIVITY HAZARD ANALYSIS (RISK MANAGEMENT)**

1. Major phases of work anticipated:

2. Definable Features of Work (DFOW)

*Note.* An activity-specific AHA will be submitted to the KO/COR for each DFOW prior to any work being performed.

3. List equipment to be used:

4. Anticipated High-Risk Activities: (See examples below, check all that apply):

|                                                             |                                                  |
|-------------------------------------------------------------|--------------------------------------------------|
| <input type="checkbox"/> Electrical and/or Hazardous Energy | <input type="checkbox"/> Confined Space          |
| <input type="checkbox"/> Working at Heights                 | <input type="checkbox"/> Excavations & Trenching |
| <input type="checkbox"/> Scaffolding                        | <input type="checkbox"/> Other: _____            |
| <input type="checkbox"/> Diving                             | <input type="checkbox"/> Other: _____            |
| <input type="checkbox"/> Load Handling Equipment            | <input type="checkbox"/> Other: _____            |
| <input type="checkbox"/> Occupational Exposure              | <input type="checkbox"/> Other: _____            |

|                                                                                                                                                                                                           |                              |                             |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------|-----------------------------|
| 5. Detailed project-specific hazards and controls will be provided utilizing AHAs for each activity/DFOW.                                                                                                 | <input type="checkbox"/> Yes | <input type="checkbox"/> No |
| 6. No work will begin on an activity/DFOW until the initial AHA addressing the project-specific hazards has been developed, reviewed, and accepted by the KO/COR. (See EM 385-1-1 Chapter 2 section 2-6). | <input type="checkbox"/> Yes | <input type="checkbox"/> No |
| 7. AHAs are living documents and are intended to be created, utilized in the field, and updated (by the workers) as necessary.                                                                            | <input type="checkbox"/> Yes | <input type="checkbox"/> No |
| 8. Workers/crews will have accepted AHA(s) that reflects current site conditions, personnel, equipment, control measures, etc. while the work is being performed?                                         | <input type="checkbox"/> Yes | <input type="checkbox"/> No |
| 9. AHA will be used by the contractor personnel to assure work is being performed consistent with the AHA?                                                                                                | <input type="checkbox"/> Yes | <input type="checkbox"/> No |
| 10. Once the activity has been completed, the AHA will be available and kept onsite for the length of the contract.                                                                                       | <input type="checkbox"/> Yes | <input type="checkbox"/> No |
| 11. AHAs for unknown work activities will be submitted to the KO/COR prior to work and attached to Appendix 4 of this document.                                                                           | <input type="checkbox"/> Yes | <input type="checkbox"/> No |
| 12. Who has the authority to accept residual risk on AHA(s)? (List below)                                                                                                                                 |                              |                             |

| Category of Risk    | Approval Authority (Name and Title) |
|---------------------|-------------------------------------|
| Extremely High Risk |                                     |
| High Risk           |                                     |
| Medium Risk         |                                     |
| Low Risk            |                                     |

**PART 11: REQUIRED PROJECT SITE-SPECIFIC PLANS AND PROCEDURES**

| 1. Based on a risk assessment of contracted activities and on mandatory OSHA compliance programs, the contractor will ensure that all applicable SOH risks and associated compliance plans are in place.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |                                 | <input type="checkbox"/> Yes | <input type="checkbox"/> No             |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------|------------------------------|-----------------------------------------|
| 2. Include all project-specific compliance plans, as applicable to the work being performed, and as identified below. The plans will incorporate project-wide procedures to control hazards to which the employees of all project employers may be exposed.                                                                                                                                                                                                                                                                                                                                                                                                                                                           |                                 | <input type="checkbox"/> Yes | <input type="checkbox"/> No             |
| 3. These plans and procedures will be coordinated with all project employers and be included in project-specific emergency response and evacuation procedures.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                 | <input type="checkbox"/> Yes | <input type="checkbox"/> No             |
| 4. Address each of the plans in the outline below in the order that they are listed.<br>Option 1: If a plan is applicable, develop and attach it to Appendix 5. Submit to the KO/COR with this worksheet for acceptance prior to work.<br>Option 2: If a plan is applicable, but all of the minimum required information for the plan is not yet known, provide justification next to each plan title, and provide an expected date the plan will be created, reviewed, and attached to Appendix 5. Submit to the KO/COR with this worksheet for acceptance prior to work.<br>Option 3: If a plan is not applicable because of the nature of the work to be performed, provide justification next to each plan title. |                                 |                              |                                         |
| Minimum plans required by EM 385-1-1                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | Reference EM 385-1-1 paragraph: | Select Option                | Justification for Option 2 and Option 3 |
| Exposure Control Plan                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 | 3-7.a                           |                              |                                         |
| AED Program                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           | 3-7.b                           |                              |                                         |
| Construction Site Plan                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                | 4-7.a                           |                              |                                         |
| Access/Haul Road Plan                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 | 4-7.b                           |                              |                                         |
| Hearing Conservation Program                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | 5-7.a                           |                              |                                         |
| Respiratory Protection Program                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        | 5-7.b                           |                              |                                         |
| Hazard Communication (HazCom) Program                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 | 6-7.a                           |                              |                                         |
| Process Safety Management (PSM) Program                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | 6-7.b                           |                              |                                         |
| Lead Compliance Plan                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | 6-7.c                           |                              |                                         |
| Asbestos Management Plan                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              | 6-7.d                           |                              |                                         |
| Ionizing Radiation Safety Plan                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        | 6-7.e                           |                              |                                         |
| Radiofrequency Plan                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   | 6-7.e                           |                              |                                         |
| Abrasive Blasting Plan                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                | 6-7.g                           |                              |                                         |
| Thermal Stress Management Plan                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        | 6-7.h                           |                              |                                         |
| Mold Remediation Plan                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 | 6-7.i                           |                              |                                         |
| Silica Compliance Plan                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                | 6-7.j                           |                              |                                         |
| Fatigue Management Plan                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | 6-7.k                           |                              |                                         |
| Night Operations Lighting Plan                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        | 7-7                             |                              |                                         |
| Traffic Control Plan                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | 8-7                             |                              |                                         |
| Fire Prevention Plan                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | 9-7.a                           |                              |                                         |
| Wildland Fire Management Plan                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | 9-7.b                           |                              |                                         |
| Housekeeping Plan                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     | 10-7                            |                              |                                         |
| Electrical Safety Plan                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                | 11-7                            |                              |                                         |
| Assured Equipment Grounding Conductor Program                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | 11-7.b                          |                              |                                         |
| Energy Control Plan                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   | 12-7.a                          |                              |                                         |
| Hazard Isolation Procedures                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           | 12-7.b                          |                              |                                         |

## Attachment 6

|                                           |            |  |  |
|-------------------------------------------|------------|--|--|
| Demolition Plan                           | 17-7       |  |  |
| Emergency Plan for Marine Activities      | 19-7.a     |  |  |
| Severe Weather Plan for Marine Activities | 19-7.b     |  |  |
| Float Plans                               | 19-7.c     |  |  |
| Tow Plans                                 | 19-7.d     |  |  |
| Fall Protection and Prevention Plan       | 21-7.a     |  |  |
| Rescue Plan                               | 21-7.b     |  |  |
| Scaffold Work Plan                        | 21-7.b     |  |  |
| Rope Access Work Plan                     | 23-7       |  |  |
| Excavation and Trenching Plan             | 25-7       |  |  |
| Fire Prevention and Protection Plan       | 26-7 a & f |  |  |
| Compressed Air Work Plan                  | 26-7 a & b |  |  |
| Contingency Response Plan                 | 26-7 a & c |  |  |
| Emergency Rescue Plans and Equipment      | 26-7 a & d |  |  |
| Ventilation and Dust Control Plan         | 26-7 a & e |  |  |
| Formwork and Shoring Plan                 | 27-7.a     |  |  |
| Masonry Bracing Plan                      | 27-7.b     |  |  |
| Steel Erection Plan                       | 28-7.a     |  |  |
| Site Layout Plan                          | 28-7.b     |  |  |
| Explosive Site Safety Plan                | 29-7.a     |  |  |
| Master Blasting Plan                      | 29-7.b     |  |  |
| Vibrations Monitoring Plan                | 29-7.c     |  |  |
| Dive Operations Plan                      | 30-7.a & d |  |  |
| Emergency Management Plan                 | 30-7.a & e |  |  |
| Safe Practices Manual                     | 30-7.b     |  |  |
| Snorkeling Plan                           | 30-7.f     |  |  |
| Tree Maintenance and Removal Plan         | 31-7       |  |  |
| Construction Safety and Phasing Plan      | 32-7.a     |  |  |
| Safety Plan Compliance Document           | 32-7.b     |  |  |
| Aviation Pre-Accident Plan                | 33-7       |  |  |
| Standard Lift Plan                        | 34-7.b     |  |  |
| Confined Space Plan                       | 34-7.b & c |  |  |
| Standard Lift Plan - Floating Plan        | 34-7.c     |  |  |
| Critical Lift Plan                        | 34-7.d     |  |  |
| Pile Driving                              | 34-7.e     |  |  |
| Housekeeping Plan                         | 35-7.a     |  |  |
| Extermination Plan                        | 35-7.b     |  |  |
| Site Safety and Health Plan               | 36-7.a     |  |  |
| Comprehensive Work Plan                   | 36-7.b     |  |  |
| Emergency Response Plan                   | 36-7.c     |  |  |

**PART 12: PROJECT SITE COORDINATION**

1. Provide procedures for coordinating SOH activities with other employers on the site of work:

**PART 13: REQUIRED APPENDICES**

Indicate if each of the following items are, or are not, attached to this plan.

|                                                                                                                           |                              |                             |
|---------------------------------------------------------------------------------------------------------------------------|------------------------------|-----------------------------|
| Appendix 1. Project Map                                                                                                   | <input type="checkbox"/> Yes | <input type="checkbox"/> No |
| Appendix 2. Subcontractor/Suppliers                                                                                       | <input type="checkbox"/> Yes | <input type="checkbox"/> No |
| Appendix 3. Personal Qualifications and Designations                                                                      | <input type="checkbox"/> Yes | <input type="checkbox"/> No |
| Appendix 4. Activity Hazard Analysis                                                                                      | <input type="checkbox"/> Yes | <input type="checkbox"/> No |
| Appendix 5. Site-specific plans and procedures                                                                            | <input type="checkbox"/> Yes | <input type="checkbox"/> No |
| Appendix 6. Any additional plans, procedures, etc. can be added to this appendix and will be coordinated with the KO/COR. | <input type="checkbox"/> Yes | <input type="checkbox"/> No |



**Order Completion Statement**

Delivery OrderNumber: \_\_\_\_\_

Vendor: \_\_\_\_\_

Address: \_\_\_\_\_

\_\_\_\_\_

\_\_\_\_\_

I acknowledge that I have received final payment on the total order amount of \$\_\_\_\_\_, and that no other invoices or demands for payment under the Delivery Order will be submitted. The total order amount accurately accounts for any discounts or other changes from the original award amount. The Delivery Order may be closed out upon receipt of the final payment.

Signature: \_\_\_\_\_

Name: \_\_\_\_\_

Title: \_\_\_\_\_

**\*\*\* PLEASE SUBMIT THIS COMPLETED FORM WITH FINAL INVOICE \*\*\***

## Technical Review

### Round #1

## Pacific Multi Installation - Yongsan-Casey 2849, Daegu 593 - Appliances

**Vendor Instructions:** The Technical Documents Checklist must be completed and returned in Word format by the contractor performing as the lead quoter. Each Vendor shall demonstrate in written form how they are meeting the FID (Att. 2) requirements. Manufacturers' published catalogs and CAD drawings are acceptable forms of demonstrations. A blanket statement that Vendor is "meeting the FID requirement" or a quote submitted without the necessary documentation is considered non-conforming. Vendors must comment in the light blue fields only, in black text. HNC's comments in the white fields in red text denotes the item is technically unacceptable or will be in black text when the item is technically acceptable. Vendor shall not modify prior rounds or HNC comments.

### Technical Documents Checklist

|                                |  |
|--------------------------------|--|
| Vendor or Lead Quoter:         |  |
| Point of Contact for this RFQ: |  |
| Email Address:                 |  |
| Telephone Number:              |  |

**For Admin Furnishings Tech Review answer questions 1-4. For Housing Furnishings Tech Review answer 2-4.**

#### 1. Do all quoted items meet all current environmental certificates?

|     |  |                                                                                                             |
|-----|--|-------------------------------------------------------------------------------------------------------------|
| Yes |  |                                                                                                             |
| No  |  | If no, do not continue. To be considered for award all items shall meet current environmental certificates. |

#### 2. Are technical documents organized sequentially according to the Furniture Item Descriptions (FID)?

|     |  |                                                                                                   |
|-----|--|---------------------------------------------------------------------------------------------------|
| Yes |  |                                                                                                   |
| No  |  | If no, do not continue; to be considered for award, technical documents shall be as stated above. |

#### 3. Do all quoted items meet all current required warranties?

|     |  |                                                                                              |
|-----|--|----------------------------------------------------------------------------------------------|
| Yes |  |                                                                                              |
| No  |  | If no, do not continue. To be considered for award, all items shall meet current warranties. |

#### 4. Are technical documents annotated to draw attention to the construction requirements and item descriptions required in the FID?

|     |  |                                                                                                   |
|-----|--|---------------------------------------------------------------------------------------------------|
| Yes |  |                                                                                                   |
| No  |  | If no, do not continue. To be considered for award, technical documents shall be as stated above. |

**Vendors: Do not go beyond this point until requested as a response to clarifications / communications by HNC .**

**Vendor**

**Technical Review of Quoted Items**

## Technical Review

### Round #1

#### Pacific Multi Installation - Yongsan-Casey 2849, Daegu 593 - Appliances

HNC Clarification/Comment - white fields  
Vendor Reply- light blue fields

(INSERT EXCEL TABLE HERE)

*To be completed by HNC only:*

| 1 <sup>st</sup> Round Technical Review |      |  |     |  |       |  |                          |
|----------------------------------------|------|--|-----|--|-------|--|--------------------------|
| Technically Acceptable:                | Yes: |  | No: |  | Date: |  | HNC Technical Evaluator: |
| Comments:                              |      |  |     |  |       |  |                          |

| 2 <sup>nd</sup> Round Technical Review |      |  |     |  |       |  |                          |
|----------------------------------------|------|--|-----|--|-------|--|--------------------------|
| Technically Acceptable:                | Yes: |  | No: |  | Date: |  | HNC Technical Evaluator: |
| Comments:                              |      |  |     |  |       |  |                          |

| 3 <sup>rd</sup> Round Technical Review |      |  |     |  |       |  |                          |
|----------------------------------------|------|--|-----|--|-------|--|--------------------------|
| Technically Acceptable:                | Yes: |  | No: |  | Date: |  | HNC Technical Evaluator: |
| Comments:                              |      |  |     |  |       |  |                          |

| 4 <sup>th</sup> Round Technical Review |      |  |     |  |       |  |                          |
|----------------------------------------|------|--|-----|--|-------|--|--------------------------|
| Technically Acceptable:                | Yes: |  | No: |  | Date: |  | HNC Technical Evaluator: |
| Comments:                              |      |  |     |  |       |  |                          |